Ministry of Health

Afya House, Cathedral Road, P.O. Box 30016-00100, Nairobi

TENDER DOCUMENT

Tender Reference: TND-MOH-2027-033
Tender Name: Supply and delivery of business laptops
Procurement Method: Open Tender - National Open Tender

Contents

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Section I - Instructions to Tenderers

A. General Provisions

1. Scope of Tender

1.1 The Procuring Entity as defined in the TDS invites tenders for supply of goods and, if applicable, any Related Services incidental thereto, as specified in Section V, Supply Requirements. The name, identification, and number of lots (contracts) of this Tender Document are specified in the TDS.

1.2 Throughout this tendering document:

- a) the term “in writing” means communicated in written form (e.g. by mail, e-mail, fax, including if specified in the TDS, distributed or received through the electronic-procurement system used by the Procuring Entity) with proof of receipt;
- b) if the context so requires, “singular” means “plural” and vice versa;
- c) “Day” means calendar day, unless otherwise specified as “Business Day”. A Business Day is any day that is an official working day of the Procuring Entity. It excludes official public holidays.

2. Fraud and Corruption

2.1 The Procuring Entity requires compliance with the provisions of the Public Procurement and Asset Disposal Act, 2015, Section 62 “Declaration not to engage in corruption”. The tender submitted by a person shall include a declaration that the person shall not engage in any corrupt or fraudulent practice and a declaration that the person or his or her sub-contractors are not debarred from participating in public procurement proceedings.

2.2 The Procuring Entity requires compliance with the provisions of the Competition Act 2010, regarding collusive practices in contracting. Any tenderer found to have engaged in collusive conduct shall be disqualified and criminal and/or civil sanctions may be imposed. To this effect, Tenders shall be required to complete and sign the “Certificate of Independent Tender Determination” annexed to the Form of Tender.

2.3 Unfair Competitive Advantage - Fairness and transparency in the tender process require that the firms or their Affiliates competing for a specific assignment do not derive a competitive advantage from having provided consulting services related to this tender. To that end, the Procuring Entity shall indicate in the Data Sheet and make available to all the firms together with this tender document all information that would in that respect give such firm any unfair competitive advantage over competing firms.

3. Eligible Tenderers

3.1 A Tenderer may be a firm that is a private entity, an individual, a state-owned enterprise or institution subject to ITT3.7, or any combination of such entities in the form of a joint venture (JV) under an existing agreement or with the intent to enter into such an agreement supported by a letter of intent. Public employees and their close relatives (spouses, children, brothers, sisters and uncles and aunts) are not eligible to participate in the tender. In the case of a joint venture, all members shall be jointly and severally liable for the execution of the entire Contract in accordance with the Contract terms. The JV shall nominate a Representative who shall have the authority to conduct all business for and on behalf of any and all the members of the JV during the Tendering process and, in the event the JV is awarded the Contract, during contract execution. The maximum number of JV members shall be specified in the TDS.

3.2 Public Officers of the Procuring Entity, their Spouses, Child, Parent, Brothers or Sister, Child, Parent, Brother or Sister of a Spouse, their business associates or agents and firms/organizations in which they have a substantial or controlling interest shall not be eligible to tender or be awarded a contract. Public Officers are also not allowed to participate in any procurement proceedings.

3.3 A Tenderer shall not have a conflict of interest. Any Tenderer found to have a conflict of interest shall be disqualified. A Tenderer may be considered to have a conflict of interest for the purpose of this Tendering process, if the Tenderer:

- a) directly or indirectly controls, is controlled by or is under common control with another Tenderer; or
- b) receives or has received any direct or indirect subsidy from another Tenderer; or
- c) has the same representative or ownership as another Tenderer; or
- d) has a relationship with another Tenderer, directly or through common third parties, that puts it in a position to influence the Tender of another Tenderer, or influence the decisions of the Procuring Entity regarding this Tendering process; or
- e) or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the goods that are the subject of the Tender; or
- f) or any of its affiliates has been hired (or is proposed to be hired) by the Procuring Entity for the Contract implementation; or
- g) would be providing goods, works, or non-consulting services resulting from or directly related to consulting services for the preparation or implementation of the project specified in the TDS ITT 1.1 that it provided or were provided by any affiliate that directly or indirectly controls, is controlled by, or is under common control with that firm; or has a close business or family relationship with a professional staff of the Procuring Entity (or of the project implementing agency), who: (i) are directly or indirectly involved in the preparation of the tendering document or specifications of the Contract, and/or the Tender evaluation process of such Contract; or (ii) would be involved in the implementation or supervision of such Contract unless the conflict stemming from such relationship has been resolved in a manner acceptable to the Procuring Entity throughout the Tendering process and execution of the Contract.

3.4 A tenderer shall not be involved in corrupt, coercive, obstructive, collusive or fraudulent practice. A tenderer that is proven to have been involved in any of these practices shall be automatically disqualified.

3.5 A firm that is a Tenderer (either individually or as a JV member) shall not submit more than one Tender, except for permitted alternative Tenders. This includes participation as a subcontractor. Such participation shall result in the disqualification of all Tenders in which the firm is involved. A firm that is not a Tenderer or a JV member, may participate as a subcontractor in more than one Tender. Members of a joint venture may not also make an individual tender, be a subcontractor in a separate tender or be part of another joint venture for the purposes of the same Tender.

3.6 A Tenderer may have the nationality of any country, subject to the restrictions pursuant to ITT3.9. A Tenderer shall be deemed to have the nationality of a country if the Tenderer is constituted, incorporated or registered in and operates in conformity with the provisions of the laws of that country, as evidenced by its articles of incorporation (or equivalent documents of constitution or association) and its registration documents, as the case

may be. This criterion also shall apply to the determination of the nationality of proposed subcontractors or sub consultants for any part of the Contract including related Services.

3.7 A Tenderer that has been debarred by the PPRA from participating in public procurement shall be ineligible to tender or be awarded a contract. The list of debarred firms and individuals is available from the PPRA's website www.ppra.go.ke

3.8 Tenderers that are state-owned enterprises or institutions may be eligible to compete and be awarded a Contract(s) only if they are (i) a legal public entity of the state Government and/or public administration, (ii) financially autonomous and not receiving any significant subsidies or budget support from any public entity or Government, and (iii) operating under commercial law and vested with legal rights and liabilities similar to any commercial enterprise to enable it compete with firms in the private sector on an equal basis. Public employees and their close relatives are not eligible to participate in the tender.

3.9 Tenderers may be ineligible if their countries of origin (a) as a matter of law or official regulations, Kenya prohibits commercial relations with that country, or (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, Kenya prohibits any import of goods or contracting for supply of goods or services from that country, or any payments to any country, person, or entity in that country. A tenderer shall provide such documentary evidence of eligibility satisfactory to the Procuring Entity, as the Procuring Entity shall reasonably request.

3.10 Tenderers shall provide the qualification information statement that the tenderer (including all members of a joint venture and subcontractors) is not associated, or have been associated in the past, directly or indirectly, with a firm or any of its affiliates which have been engaged by the Procuring entity to provide consulting services for the preparation of the design, specifications, and other documents to be used for the procurement of the goods under this Invitation for tenders.

3.11 Not applicable. No category-specific registration authority is required for this Tender.

3.12 The Competition Act of Kenya requires that firms wishing to tender as Joint Venture undertakings which may prevent, distort or lessen competition in provision of services are prohibited unless they are exempt in accordance with the provisions of Section 25 of the Competition Act, 2010. JVs will be required to seek for exemption from the Competition Authority. Exemption shall not be a condition for tender, but it shall be a condition of contract award and signature. A JV tenderer shall be given opportunity to seek such exemption as a condition of award and signature of contract. Application for exemption from the Competition Authority of Kenya may be accessed from the website www.cak.go.ke.

3.13 A Kenyan tenderer shall provide evidence of having fulfilled his/her tax obligations by producing a current tax clearance certificate or tax exemption certificate issued by the Kenya Revenue Authority.

4. Eligible Goods and Related Services

4.1 All the Goods and Related Services to be supplied under the Contract shall have their origin in any country that is eligible in accordance with ITT 3.9.

4.2 For purposes of this ITT, the term “goods” includes commodities, raw material, machinery, equipment, and industrial plants; and “related services” include services such as insurance, installation, training, and initial maintenance.

4.3 The term “origin” means the country where the goods have been mined, grown, cultivated, produced, manufactured or processed; or, through manufacture, processing, or assembly, another commercially recognized article results that differs substantially in its basic characteristics from its components.

4.4 A procuring entity shall ensure that the items listed below shall be sourced from Kenya and there shall be no substitutions from foreign sources. The affected items are:

- a) motor vehicles, plant and equipment which are assembled in Kenya;
- b) furniture, textile, foodstuffs, oil and gas, information communication technology, steel, cement, leather, agro-processed products, sanitary products, and other goods made in Kenya; or
- c) goods manufactured, mined, extracted or grown in Kenya.

4.5 Any goods, works and production processes with characteristics that have been declared by the relevant national environmental protection agency or by other competent authority as harmful to human beings and to the environment shall not be eligible for procurement.

B. Contents of Request for Tenders Document

5. Sections of Tendering Document

5.1 The tendering document consist of Parts 1, 2, and 3, which include all the sections indicated below, and should be read in conjunction with any Addenda issued in accordance with ITT8.

PART 1: Tendering Procedures

- i) Section I - Instructions to Tenderers (ITT)
- ii) Section II - Tendering Data Sheet (TDS)
- iii) Section III - Evaluation and Qualification Criteria
- iv) Section IV - Tendering Forms

PART 2: Supply Requirements

- v) Section V - Schedule of Requirements

PART 3: Contract

- vi) Section VI - General Conditions of Contract (GCC)
- vii) Section VII - Special Conditions of Contract (SCC)
- viii) Section VIII - Contract Forms

5.2 The notice of Invitation to Tender or the notice to the prequalified Tenderers issued by the Procuring Entity is not part of the tendering document.

5.3 Unless obtained directly from the Procuring Entity, the Procuring Entity is not responsible for the completeness of the document, responses to requests for clarification, the minutes of the pre-tender meeting (if any), or addenda to the tendering document in accordance with ITT7.

5.4 The Tenderer is expected to examine all instructions, forms, terms, and specifications in the tendering document and to furnish with its Tender all information or documentation as is required by the tendering document.

6. Clarification of Tendering Document

6.1 A Tenderer requiring any clarification of the Tender Document shall contact the Procuring Entity in writing at the Procuring Entity's address specified in the TDS or raise its enquiries during the pre-Tender meeting if provided for in accordance with ITT 6.4. The Procuring Entity will respond in writing to any request for clarification, provided that such request is received no later than the period specified in the TDS prior to the deadline for submission of tenders. The Procuring Entity shall forward copies of its response to all tenderers who have acquired the Tender documents in accordance with ITT 5.3, including a description of the inquiry but without identifying its source. If so specified in the TDS, the Procuring Entity shall also promptly publish its response at the web page identified in the TDS. Should the clarification result in changes to the essential elements of the Tender Documents, the Procuring Entity shall amend the Tender Documents following the procedure under ITT 7.

6.2 The Procuring Entity shall specify in the TDS if a pre-tender conference will be held, when and where. The Tenderer's designated representative is invited to attend a pre-Tender meeting. The purpose of the meeting will be to clarify issues and to answer questions on any matter that may be raised at that stage.

6.3 The Tenderer is requested to submit any questions in writing, to reach the Procuring Entity not later than the period specified in the TDS before the meeting.

6.4 Minutes of the pre-Tender meeting, if applicable, including the text of the questions asked by Tenderers and the responses given, together with any responses prepared after the meeting, will be transmitted promptly to all Tenderers who have acquired the Tender Documents in accordance with ITT 6.3. Minutes shall not identify the source of the questions asked.

6.5 The Procuring Entity shall also promptly publish anonymized (no names) Minutes of the pre-Tender meeting at the web page identified in the TDS. Any modification to the Tender Documents that may become necessary as a result of the pre-Tender meeting shall be made by the Procuring Entity exclusively through the issue of an Addendum pursuant to ITT 7 and not through the minutes of the pre-Tender meeting. Nonattendance at the pre-Tender meeting will not be a cause for disqualification of a Tenderer.

7. Amendment of Tendering Document

7.1 At any time prior to the deadline for submission of Tenders, the Procuring Entity may amend the tendering document by issuing addenda.

7.2 Any addendum issued shall be part of the tendering document and shall be communicated in writing to all who have obtained the tender document from the Procuring Entity in accordance with ITT 6.3. The Procuring Entity shall also promptly publish the addendum on the Procuring Entity's web page in accordance with ITT 7.1.

7.3 To give prospective Tenderers reasonable time in which to take an addendum into account in preparing their Tenders, the Procuring Entity may, at its discretion, extend the deadline for the submission of Tenders, pursuant to ITT 21.2.

C. Preparation of Tenders

8. Cost of Tendering

8.1 The Tenderer shall bear all costs associated with the preparation and submission of its Tender, and the Procuring Entity shall not be responsible or liable for those costs, regardless of the conduct or outcome of the Tendering process.

9. Language of Tender

9.1 The Tender, as well as all correspondence and documents relating to the Tender exchanged by the Tenderer and the Procuring Entity, shall be written in English Language. Supporting documents and printed literature that are part of the Tender may be in another language provided they are accompanied by an accurate translation of the relevant passages into the English Language, in which case, for purposes of interpretation of the Tender, such translation shall govern.

10. Documents Comprising the Tender

10.1 The Tender shall comprise the following:

- a) Form of Tender prepared in accordance with ITT11;
- b) Price Schedules: completed in accordance with ITT 11 and ITT 13;
- c) Tender Security, in accordance with ITT 18.1;
- d) Alternative Tender: if permissible, in accordance with ITT12;
- e) Authorization: written confirmation authorizing the signatory of the Tender to commit the Tenderer, in accordance with ITT19.3;
- f) Qualifications: documentary evidence in accordance with ITT 16.2 establishing the Tenderer qualifications to perform the Contract if its Tender is accepted;
- g) Tenderer Eligibility: documentary evidence in accordance with ITT16.1 establishing the Tenderer eligibility to tender;
- h) Eligibility of Goods and Related Services: documentary evidence in accordance with ITT 15, establishing the eligibility of the Goods and Related Services to be supplied by the Tenderer;
- i) Conformity: documentary evidence in accordance with ITT15.2 that the Goods and Related Services conform to the tender document; and
- j) any other document required in the TDS.

10.2 In addition to the requirements under ITT 10.1, Tenders submitted by a JV shall include a copy of the Joint Venture Agreement entered into by all members. Alternatively, a letter of intent to execute a Joint Venture Agreement in the event of a successful Tender shall be signed by all members and submitted with the Tender, together with a copy of the proposed Agreement.

10.3 The Tenderer shall furnish in the Form of Tender information on commissions gratuities, and fees, if any, paid or to be paid to agents or any other party relating to this Tender.

11. Form of Tender and Price Schedules

11.1 The Form of Tender and Price Schedules shall be prepared using the relevant forms furnished in Section IV, Tendering Forms. The forms must be completed without any alterations to the text. All blank spaces shall be filled in with the information requested. The Tenderer shall chronologically serialise pages of all tender documents submitted.

12. Alternative Tenders

12.1 Unless otherwise specified in the TDS, alternative Tenders shall not be considered.

13. Tender Prices and Discounts

13.1 The prices quoted by the Tenderer in the Form of Tender and in the Price Schedules shall conform to the requirements specified below.

13.2 All lots (contracts) and items must be listed and priced separately in the Price Schedules.

13.3 The price to be quoted in the Form of Tender in accordance with ITT10.1 shall be the total price of the Tender, including any discounts offered.

13.4 The Tenderer shall quote any discounts and indicate the methodology for their application in the form of tender. Conditional discounts will be rejected.

13.5 Prices quoted by the Tenderer shall be fixed during the performance of the Contract and not subject to variation on any account. A Tender submitted with an adjustable price quotation shall be treated as non-responsive and shall be rejected, pursuant to ITT 28. Prices shall not be adjustable for this Tender.

13.6 If specified in ITT 1.1, Tenders are being invited for individual lots (contracts) or for any combination of lots (packages). Unless otherwise specified in the TDS, prices quoted shall correspond to 100% of the items specified for each lot and to 100% of the quantities specified for each item of a lot. Tenderers wishing to offer discounts for the award of more than one Contract shall specify in their Tender the price reductions applicable to each package, or alternatively, to individual Contracts within the package. Discounts shall be submitted in accordance with ITT 13.4 provided the Tenders for all lots (contracts) are opened at the same time.

13.7 The terms EXW, CIP, CIF, DDP and other similar terms shall be governed by the rules prescribed in the current edition of Incoterms, published by the International Chamber of Commerce.

13.8 Prices shall be quoted as specified in each Price Schedule included in Section IV, Tendering Forms. The disaggregation of price components is required solely for the purpose of facilitating the comparison of Tenders by the Procuring Entity. This shall not in any way limit the Procuring Entity's right to contract on any of the terms offered. In quoting prices, the Tenderer shall be free to use transportation through carriers registered in any eligible country. Similarly, the Tenderer may obtain insurance services from any eligible country in accordance with ITT 3.6, Eligible Tenderers. Prices shall be entered in the following manner:

- a) For Goods manufactured in Kenya:
  - i) the price of the Goods quoted EXW (ex-works, ex-factory, ex warehouse, ex showroom, or off-the-shelf, as applicable) final destination point indicated in the TDS, including all customs duties and sales and other taxes already paid or payable on the components and raw material used in the manufacture or assembly of the Goods;
  - ii) any sales tax and other taxes which will be payable in Kenya on the Goods if the Contract is awarded to the Tenderer; and
  - iii) the price for inland transportation, insurance, and other local services required to convey the Goods to their final destination specified in the TDS.
- b) For Goods manufactured outside Kenya, to be imported:
  - i) the price of the Goods, quoted CIP named place of destination, in Kenya, as specified in the TDS;
  - ii) the price for inland transportation, insurance, and other local services required to convey the Goods from the named place of destination to their final destination specified in the TDS;
- c) For Goods manufactured outside Kenya, already imported:
  - i) the price of the Goods, including the original import value of the Goods; plus, any mark-up (or rebate); plus, any other related local cost, and custom duties and other import taxes already paid or to be paid on the Goods already imported;
  - ii) the custom duties and other import taxes already paid (need to be supported with documentary evidence) or to be paid on the Goods already imported;
  - iii) any sales and other taxes levied in Kenya which will be payable on the Goods if the Contract is awarded to the Tenderer; and
  - iv) the price for inland transportation, insurance, and other local services required to convey the Goods from the named place of destination to their final destination (Project Site) specified in the TDS.
- d) for Related Services, other than inland transportation and other services required to convey the Goods to their final destination, whenever such Related Services are specified in the Schedule of Requirements, the price of each item comprising the Related Services (inclusive of any applicable taxes).

14. Currencies of Tender and Payment

14.1 The currency(ies) of the Tender, the currency(ies) of award and the currency(ies) of contract payments shall be the same.

14.2 The Tenderer shall quote in Kenya shillings.

14.3 The rates of exchange to be used by the Tenderer shall be based on the exchange rates provided by the Central Bank of Kenya on the date 30 days prior to the actual date of tender opening.

15. Documents Establishing the Eligibility and Conformity of the Goods and Related Services

15.1 To establish the eligibility of the Goods and Related Services in accordance with ITT 15, Tenderers shall complete the country of origin

declarations in the Price Schedule Forms, included in Section IV, Tendering Forms.

15.2 To establish the conformity of the Goods and Related Services to the tendering document, the Tenderer shall furnish as part of its Tender the documentary evidence that the Goods conform to the technical specifications and standards specified in Section V, Schedule of Requirements.

15.3 The documentary evidence may be in the form of literature, drawings or data, and shall consist of a detailed item by item description of the essential technical and performance characteristics of the Goods and Related Services, demonstrating substantial responsiveness of the Goods and Related Services to the technical specification, and if applicable, a statement of deviations and exceptions to the provisions of the Section V, Schedule of Requirements.

15.4 The Tenderer shall also furnish a list giving full particulars, including available sources and current prices of spare parts, special tools, etc., necessary for the proper and continuing functioning of the Goods during the period specified in the TDS following commencement of the use of the goods by the Procuring Entity.

15.5 Standards for workmanship, process, material, and equipment, as well as references to brand names or catalogue numbers specified by the Procuring Entity in the Schedule of Requirements, are intended to be descriptive only and not restrictive. The Tenderer may offer other standards of quality, brand names, and/or catalogue numbers, provided that it demonstrates, to the Procuring Entity's satisfaction, that the substitutions ensure substantial equivalence or are superior to those specified in the Section V, Schedule of Requirements.

16. Documents Establishing the Eligibility and Qualifications of the Tenderer

16.1 To establish Tenderer eligibility in accordance with ITT 4, Tenderers shall complete the Form of Tender, included in Section IV, Tendering Forms.

16.2 The documentary evidence of the Tenderer qualifications to perform the Contract if its Tender is accepted shall establish to the Procuring Entity's satisfaction:

- a) that, if required in the TDS, a Tenderer that does not manufacture or produce the Goods it offers to supply shall submit the Manufacturer's Authorization using the form included in Section IV, Tendering Forms to demonstrate that it has been duly authorized by the manufacturer or producer of the Goods to supply these Goods in Kenya;
- b) that, if required in the TDS, in case of a Tenderer not doing business within the Kenya, the Tenderer is or will be (if awarded the Contract) represented by an Agent in the country equipped and able to carry out the Supplier's maintenance, repair and spare parts-stocking obligations prescribed in the Conditions of Contract and/or Technical Specifications; and
- c) that the Tenderer meets each of the qualification criterion specified in Section III, Evaluation and Qualification Criteria.

17. Period of Validity of Tenders

17.1 Tenders shall remain valid for the Tender Validity period specified in the TDS. The Tender Validity period starts from the date fixed for the Tender submission deadline (as prescribed by the Procuring Entity in accordance with ITT 21.1). A Tender valid for a shorter period shall be rejected by the Procuring Entity as non-responsive.

17.2 In exceptional circumstances, prior to the expiration of the Tender validity period, the Procuring Entity may request Tenderers to extend the period of validity of their Tenders. The request and the responses shall be made in writing. If a Tender Security is requested in accordance with ITT 18, it shall also be extended for a corresponding period. A Tenderer may refuse the request without forfeiting its Tender Security. A Tenderer granting the request shall not be required or permitted to modify its Tender, except as provided in ITT 17.3.

17.3 Not applicable. Prices are fixed for this Tender and are not subject to adjustment; this Tender does not use an adjustable-price contract price-recalculation rule if award is delayed beyond the initial Tender validity period.

18. Tender Security

18.1 The Tenderer shall furnish as part of its Tender a Tender Security, as specified in the TDS, in a form acceptable for upload through the electronic-procurement system (a digitally signed or duly certified instrument), in the amount and currency specified in the TDS.

18.2 A Tender-Securing Declaration is not used for this Tender; a Tender Security is required in accordance with ITT 18.1.

18.3 The Tender Security shall be a demand guarantee in any of the following forms at the Tenderer's option:

- i) cash;
- ii) a bank guarantee;
- iii) a guarantee by an insurance company registered and licensed by the Insurance Regulatory Authority listed by the Authority; or
- iv) a letter of credit; or
- v) guarantee by a deposit taking micro-finance institution, Sacco society, the Youth Enterprise Development Fund or the Women Enterprise Fund.

18.4 If an unconditional guarantee is issued by a non-Bank financial institution located outside Kenya, the issuing non-Bank financial institution shall have a correspondent financial institution located in Kenya to make it enforceable unless the Procuring Entity has agreed in writing, prior to Tender submission, that a correspondent financial institution is not required. In the case of a bank guarantee, the Tender Security shall be submitted either using the Tender Security Form included in Section IV, Tendering Forms, or in another substantially similar format approved by the Procuring Entity prior to Tender submission. The Tender Security shall be valid for thirty (30) days beyond the original validity period of the Tender, or beyond any period of extension if requested under ITT 17.2.

18.5 Any Tender not accompanied by a substantially responsive Tender Security shall be rejected by the Procuring Entity as non-responsive.

18.6 The Tender Security of unsuccessful Tenderers shall be returned as promptly as possible upon the successful Tenderer signing the Contract and furnishing the Performance Security pursuant to ITT 46. The Procuring Entity shall also promptly return the tender security to the tenderers where the procurement proceedings are terminated, all tenders were determined non-responsive or a bidder declines to extend tender validity period.

18.7 The Tender Security of the successful Tenderer shall be returned as promptly as possible once the successful Tenderer has signed the Contract and furnished the required Performance Security.

18.8 The Tender Security may be forfeited:

- a) if a Tenderer withdraws its Tender during the period of Tender validity specified by the Tenderer in the Form of Tender, or any extension thereto provided by the Tenderer; or
- b) if the successful Tenderer fails to:
  - i) sign the Contract in accordance with ITT 45; or
  - ii) furnish a Performance Security in accordance with ITT 46.

18.9 A Tender-Securing Declaration is not used for this Tender; see ITT 18.8 for the circumstances in which the Tender Security may be forfeited.

18.10 The Tender Security of a JV must be in the name of the JV that submits the Tender. If the JV has not been legally constituted into a legally enforceable JV at the time of Tendering, the Tender Security shall be in the names of all future members as named in the letter of intent referred to in ITT3.1 and ITT 10.2.

18.11 A tenderer shall not issue a tender security to guarantee itself.

19. Format and Signing of Tender

19.1 The Tenderer shall prepare the documents comprising the Tender as described in ITT 11 and submit them as a single electronic Tender through the electronic-procurement system in accordance with ITT 20.1.

19.2 Tenderers shall mark as “CONFIDENTIAL” information in their Tenders which is confidential to their business. This may include proprietary information, trade secrets, or commercial or financially sensitive information.

19.3 The Tender shall be signed by a person duly authorized to sign on behalf of the Tenderer, in accordance with ITT 20.1. This authorization shall consist of a written confirmation as specified in the TDS and shall be attached to the Tender. The name and position held by each person signing the authorization must be stated below the signature. All pages of the Tender where entries or amendments have been made shall be signed or initialed by the person signing the Tender.

19.4 In case the Tenderer is a JV, the Tender shall be signed by an authorized representative of the JV on behalf of the JV, and so as to be legally binding on all the members as evidenced by a power of attorney signed by each members' legally authorized representatives.

19.5 Any inter-lineation, erasures, or overwriting shall be valid only if they are signed or initialed by the person signing the Tender.

D. Submission and Opening of Tenders

20. Sealing and Marking of Tenders

20.1 The Tenderer shall submit its Tender electronically through the Procuring Entity's electronic-procurement system, in accordance with the TDS and Section IV, Tendering Forms. Where an original signed document must accompany an electronic submission, the Tenderer shall upload a scanned copy bearing the required signature.

20.2 Because Tenders are submitted as a single electronic file, no separate marking of copies is required.

20.3 Alternative Tenders are not permitted for this Tender; see ITT 12.1.

20.4 The Procuring Entity shall assume no responsibility for a Tender that is incompletely or incorrectly submitted through the electronic-procurement system. Tenders misplaced or opened prematurely as a result of the Tenderer's own submission error will not be accepted.

21. Deadline for Submission of Tenders

21.1 Tenders must be received by the Procuring Entity through the electronic-procurement system no later than the date and time specified in the TDS.

21.2 The Procuring Entity may, at its discretion, extend the deadline for the submission of Tenders by amending the tendering document in accordance with ITT7, in which case all rights and obligations of the Procuring Entity and Tenderers previously subject to the deadline shall thereafter be subject to the deadline as extended.

22. Late Tenders

22.1 The Procuring Entity shall not consider any Tender that arrives after the deadline for submission of Tenders. The electronic-procurement system shall not accept a Tender submitted after the deadline for submission of Tenders.

23. Withdrawal, Substitution, and Modification of Tenders

23.1 A Tenderer may withdraw, substitute, or modify its Tender after it has been submitted by sending a written notice, duly signed by an authorized representative, and shall include a copy of the authorization (the power of attorney) in accordance with ITT19.3, (except that withdrawal notices do not require copies). The corresponding substitution or modification of the Tender must accompany the respective written notice. All notices must be:

- a) prepared and submitted through the electronic-procurement system in accordance with ITT 20 and 21 (except that withdrawal notices do not require copies), and clearly marked “WITHDRAWAL,” “SUBSTITUTION,” or “MODIFICATION;” and
- b) received by the Procuring Entity prior to the deadline prescribed for submission of Tenders, in accordance with ITT 22.

23.3 A Tender requested to be withdrawn in accordance with ITT 23.1 shall remain unopened in the electronic-procurement system and shall be recorded as withdrawn.

23.4 No Tender may be withdrawn, substituted, or modified in the interval between the deadline for submission of Tenders and the expiration of the period of Tender validity specified by the Tenderer on the Form of Tender or any extension thereof.

24. Tender Opening

24.1 Except as in the cases specified in ITT 23, the Procuring Entity shall, at the Tender opening, publicly open and read out all Tenders received by the deadline at the date and time specified in the TDS, through the electronic tender opening procedure specified in the TDS, in the presence of Tenderers' designated representatives who choose to attend electronically.

24.2 First, submissions marked “WITHDRAWAL” shall be opened and read out and the corresponding Tender shall not be opened, but treated as withdrawn. If the withdrawal notice does not contain a copy of the “power of attorney” confirming the signature as a person duly authorized to sign on behalf of the Tenderer, the corresponding Tender will be opened. No Tender withdrawal shall be permitted unless the corresponding withdrawal notice contains a valid authorization to request the withdrawal and is read out at Tender opening.

24.3 Next, submissions marked “SUBSTITUTION” shall be opened and read out and exchanged with the corresponding Tender being substituted, and the substituted Tender shall not be opened, but treated as withdrawn. No Tender substitution shall be permitted unless the corresponding substitution notice contains a valid authorization to request the substitution and is read out at Tender opening.

24.4 Next, submissions marked “MODIFICATION” shall be opened and read out with the corresponding Tender. No Tender modification shall be permitted unless the corresponding modification notice contains a valid authorization to request the modification and is read out at Tender opening.

24.5 Next, all remaining Tenders shall be opened one at a time, reading out: the name of the Tenderer and whether there is a modification; the total Tender Price, including any discounts; the presence or absence of a Tender Security; and any other details as the Procuring Entity may consider appropriate.

24.6 Only Tenders and discounts that are opened and read out at Tender opening shall be considered further. All appointed members of the Tender Opening Committee, being not less than three, shall electronically authenticate each Tender's opening record and the final opening minutes, in accordance with section 78 of the Public Procurement and Asset Disposal Act, 2015.

24.7 The Procuring Entity shall neither discuss the merits of any Tender nor reject any Tender (except for late Tenders, in accordance with ITT 22.1).

24.8 The Procuring Entity shall prepare a record of the Tender opening that shall include, as a minimum:

- a) the name of the Tenderer and whether there is a withdrawal, substitution, or modification;
- b) the Tender Price, including any discounts;
- c) whether an alternative Tender was submitted (not applicable, as alternative Tenders are not permitted for this Tender; see ITT 12.1);
- d) the presence or absence of a Tender Security;
- e) number of pages of each tender document submitted.

24.9 The Tenderers' representatives who are present shall be requested to sign the record. The omission of a Tenderer signature on the record shall not invalidate the contents and effect of the record. A copy of the tender opening register shall be issued to a Tenderer upon request.

E. Evaluation and Comparison of Tenders

25. Confidentiality

25.1 Information relating to the evaluation of Tenders and recommendation of contract award, shall not be disclosed to Tenderers or any other persons not officially concerned with the tendering process until the information on Intention to Award the Contract is transmitted to all Tenderers in accordance with ITT 42.

25.2 Any effort by a Tenderer to influence the Procuring Entity in the evaluation or contract award decisions may result in the rejection of its Tender.

25.3 Notwithstanding ITT 25.2, from the time of Tender opening to the time of Contract Award, if any Tenderer wishes to contact the Procuring Entity on any matter related to the Tendering process, it should do so in writing.

26. Clarification of Tenders

26.1 To assist in the examination, evaluation, comparison of the Tenders, and qualification of the Tenderers, the Procuring Entity may, at its discretion, ask any Tenderer for a clarification of its Tender. Any clarification submitted by a Tenderer in respect to its Tender and that is not in response to a request by the Procuring Entity shall not be considered. The Procuring Entity's request for clarification and the response shall be in writing. No change, including any voluntary increase or decrease, in the prices or substance of the Tender shall be sought, offered, or permitted except to confirm the correction of arithmetic errors discovered by the Procuring Entity in the Evaluation of the Tenders, in accordance with ITT 30. If a Tenderer does not provide clarifications of its Tender by the date and time set in the Procuring Entity's request for clarification, its Tender may be rejected.

27. Deviations, Reservations, and Omissions

27.1 During the evaluation of Tenders, the following definitions apply:

- a) “Deviation” is a departure from the requirements specified in the Tendering document;
- b) “Reservation” is the setting of limiting conditions or withholding from complete acceptance of the requirements specified in the tendering document; and
- c) “Omission” is the failure to submit part or all of the information or documentation required in the tendering document.

28. Determination of Responsiveness

28.1 The Procuring Entity's determination of a Tender's responsiveness is to be based on the contents of the Tender itself, as defined in ITT 28.2. A substantially responsive Tender is one that meets the requirements of the tendering document without material deviation, reservation, or omission. A material deviation, reservation, or omission is one that:

- a) if accepted, would:
  - i) affect in any substantial way the scope, quality, or performance of the Goods and Related Services specified in the Contract; or
  - ii) limit in any substantial way, inconsistent with the tendering document, the Procuring Entity's rights or the Tenderer obligations under the Contract; or
- b) if rectified, would unfairly affect the competitive position of other Tenderers presenting substantially responsive Tenders.

28.2 The Procuring Entity shall examine the technical aspects of the Tender submitted in accordance with ITT 15 and ITT 16, in particular, to confirm that all requirements of Section V, Schedule of Requirements have been met without any material deviation or reservation, or omission.

28.3 If a Tender is not substantially responsive to the requirements of tendering document, it shall be rejected by the Procuring Entity and may not

subsequently be made responsive by correction of the material deviation, reservation, or omission.

29. Non-conformities, Errors and Omissions

29.1 Provided that a Tender is substantially responsive, the Procuring Entity may waive any non-conformities in the Tender.

29.2 Provided that a Tender is substantially responsive, the Procuring Entity may request that the Tenderer submit the necessary information or documentation, within a reasonable period of time, to rectify nonmaterial non-conformities or omissions in the Tender related to documentation requirements. Such omission shall not be related to any aspect of the price of the Tender. Failure of the Tenderer to comply with the request may result in the rejection of its Tender.

29.3 Provided that a Tender is substantially responsive, the Procuring Entity shall rectify quantifiable nonmaterial non-conformities related to the Tender Price. To this effect, the Tender Price shall be adjusted, for comparison purposes only, to reflect the price of a missing or non-conforming item or component in the manner specified in the TDS. The adjustment shall be based on the average price of the item or component as quoted in other substantially responsive Tenders. If the price of the item or component cannot be derived from the price of other substantially responsive Tenders, the Procuring Entity shall use its best estimate.

30. Correction of Arithmetical Errors

30.1 The tender sum as submitted and read out during the tender opening shall be absolute and final and shall not be the subject of correction, adjustment or amendment in any way by any person or entity.

30.2 Provided that the Tender is substantially responsive, the Procuring Entity shall handle errors on the following basis:

- a) Any error detected if considered a major deviation that affects the substance of the tender, shall lead to disqualification of the tender as non-responsive.
- b) Any errors in the submitted tender arising from a miscalculation of unit price, quantity, subtotal and total bid price shall be considered as a major deviation that affects the substance of the tender and shall lead to disqualification of the tender as non-responsive; and
- c) if there is a discrepancy between words and figures, the amount in words shall prevail.

30.3 Tenderers shall be notified of any error detected in their bid during the notification of award.

31. Conversion to Single Currency

31.1 For evaluation and comparison purposes, the currency of the Tender is Kenya Shillings, and no currency conversion is required.

32. Margin of Preference and Reservations

32.1 The margin of preference described in this ITT applies only to contracts procured through international competitive tendering. This Tender is procured through national competitive tendering; see ITT 32.4.

32.2 As this Tender is not procured through international competitive tendering, the calculation method for granting a margin of preference on locally manufactured goods does not apply.

32.3 A margin of preference is not applied to this Tender.

32.4 This Tender is procured on the basis of national competitive tendering and is not subject to a margin of preference.

32.5 This Tender is not reserved to a specific group of businesses under this provision. The invitation to tender is open to all interested tenderers.

33. Evaluation of Tenders

33.1 The Procuring Entity shall use the criteria and methodologies listed in this ITT and Section III, Evaluation and Qualification Criteria. No other evaluation criteria or methodologies shall be permitted. By applying the criteria and methodologies, the Procuring Entity shall determine the Lowest Evaluated Tender. This is the Tender of the Tenderer that meets the qualification criteria and whose Tender has been determined to be:

- a) substantially responsive to the tender documents; and
- b) the lowest evaluated price.

33.2 Price evaluation will be done for the Tender as a single award package as a whole, and the Tender Price as quoted in accordance with ITT 14. To evaluate a Tender, the Procuring Entity shall consider:

- a) price adjustment due to unconditional discounts offered in accordance with ITT 13.4;
- b) no adjustment for currency conversion, since Tender prices are quoted in a single currency in accordance with ITT 14.2;
- c) price adjustment due to quantifiable nonmaterial non-conformities in accordance with ITT 29.3; and
- d) no adjustment for additional evaluation factors, as none are used for this Tender.

33.3 The estimated effect of the price adjustment provisions of the Conditions of Contract, applied over the period of execution of the Contract, shall not be considered in Tender evaluation.

33.4 This Tender comprises a single award package; the provisions in this ITT for evaluating combinations of lots or packages do not apply. See ITT 5.1.

33.5 The Procuring Entity's evaluation of a Tender will include and consider sales and other similar taxes which will be payable on the Goods if a contract is awarded to the Tenderer.

33.6 No evaluation factors other than the Tender Price, as set out in this ITT and Section III, Evaluation and Qualification Criteria, are used in evaluating Tenders for this Tender.

34. Comparison of Tenders

34.1 The Procuring Entity shall compare the evaluated costs of all substantially responsive Tenders established in accordance with ITT 33.2 to

determine the Tender that has the lowest evaluated cost. The comparison shall be on the basis of total cost (place of final destination) prices for all goods and all prices, plus cost of inland transportation and insurance to place of destination, for goods manufactured within Kenya, together with prices for any required installation, training, commissioning and other services.

35. Abnormally Low Tenders

35.1 An Abnormally Low Tender is one where the Tender price, in combination with other constituent elements of the Tender, appears unreasonably low to the extent that the Tender price raises material concerns with the Procuring Entity as to the capability of the Tenderer to perform the Contract for the offered Tender price.

35.2 In the event of identification of a potentially Abnormally Low Tender by the evaluation committee, the Procuring Entity shall seek written clarification from the Tenderer, including a detailed price analyses of its Tender price in relation to the subject matter of the contract, scope, delivery schedule, allocation of risks and responsibilities and any other requirements of the tendering document.

35.3 After evaluation of the price analysis, in the event that the Procuring Entity determines that the Tenderer has failed to demonstrate its capability to perform the contract for the offered Tender price, the Procuring Entity shall reject the Tender.

36. Abnormally High Tenders

36.4 An abnormally high price is one where the tender price, in combination with other constituent elements of the Tender, appears unreasonably too high to the extent that the Procuring Entity is concerned that it (the Procuring Entity) may not be getting value for money or it may be paying too high a price for the contract compared with market prices or that genuine competition between Tenderers is compromised.

36.5 In case of an abnormally high tender price, the Procuring Entity shall make a survey of the market prices, check if the estimated cost of the contract is correct and review the Tender Documents to check if the specifications, scope of work and conditions of contract are contributory to the abnormally high tenders. The Procuring Entity may also seek written clarification from the tenderer on the reason for the high tender price. The Procuring Entity shall proceed as follows:

- i) If the tender price is abnormally high based on wrong estimated cost of the contract, the Procuring Entity may accept or not accept the tender depending on the Procuring Entity's budget considerations.
- ii) If specifications, scope of work and/or conditions of contract are contributory to the abnormally high tender prices, the Procuring Entity shall reject all tenders and may retender for the contract based on revised estimates, specifications, scope of work and conditions of contract, as the case may be.

36.6 If the Procuring Entity determines that the Tender Price is abnormally too high because genuine competition between tenderers is compromised (often due to collusion, corruption or other manipulations), the Procuring Entity shall reject all Tenders and shall institute or cause relevant Government Agencies to institute an investigation on the cause of the compromise, before retendering.

37. Post-Qualification of the Tenderer

37.1 The Procuring Entity shall determine, to its satisfaction, whether the eligible Tenderer that is selected as having submitted the lowest evaluated cost and substantially responsive Tender, meets the qualifying criteria specified in Section III, Evaluation and Qualification Criteria.

37.2 The determination shall be based upon an examination of the documentary evidence of the Tenderer qualifications submitted by the Tenderer, pursuant to ITT 15 and 16. The determination shall not take into consideration the qualifications of other firms such as the Tenderer's subsidiaries, parent entities, affiliates, subcontractors (other than specialized subcontractors if permitted in the tendering document), or any other firm(s) different from the Tenderer.

37.3 An affirmative determination shall be a prerequisite for award of the Contract to the Tenderer. A negative determination shall result in disqualification of the Tender, in which event the Procuring Entity shall proceed to the Tenderer who offers a substantially responsive Tender with the next lowest evaluated cost to make a similar determination of that Tenderer's qualifications to perform satisfactorily.

38. Lowest Evaluated Tender

38.1 Having compared the evaluated prices of Tenders, the Procuring Entity shall determine the Lowest Evaluated Tender. The Lowest Evaluated Tender is the Tender of the Tenderer that meets the Qualification Criteria and whose Tender has been determined to be:

- a) most responsive to the Tender document; and
- b) the lowest evaluated price.

39. Procuring Entity's Right to Accept Any Tender, and to Reject Any or All Tenders

39.1 The Procuring Entity reserves the right to accept or reject any Tender, and to annul the Tendering process and reject all Tenders at any time prior to notification of Award, without thereby incurring any liability to Tenderers. In case of annulment, all Tenderers shall be notified with reasons and all Tenders submitted, and specifically, tender securities, shall be promptly returned to the Tenderers.

F. Award of Contract

40. Award Criteria

40.1 The Procuring Entity shall award the Contract to the successful tenderer whose tender has been determined to be the Lowest Evaluated Tender in accordance with procedures in Section III: Evaluation and Qualification Criteria.

41. Procuring Entity's Right to Vary Quantities at Time of Award

41.1 The Procuring Entity does not reserve the right to vary quantities at the time of award for this Tender; no quantity variation percentage is specified in the TDS.

42. Notice of Intention to Enter into a Contract

Upon award of the contract and prior to the expiry of the Tender Validity Period, the Procuring Entity shall issue a Notification of Intention to Enter into a Contract / Notification of Award to all tenderers which shall contain, at a minimum, the following information:

- a) the name and address of the Tenderer submitting the successful tender;
- b) the Contract price of the successful tender;
- c) a statement of the reason(s) the tender of the unsuccessful tenderer to whom the letter is addressed was unsuccessful, unless the price information in (b) above already reveals the reason;
- d) the expiry date of the Standstill Period; and
- e) instructions on how to request a debriefing and/or submit a complaint during the standstill period.

43. Standstill Period

43.1 The Contract shall not be awarded earlier than the expiry of a Standstill Period of 14 days to allow any dissatisfied candidate to launch a complaint. Where only one Tender is submitted, the Standstill Period does not apply.

43.2 Where the standstill period applies, it shall commence when the Procuring Entity has transmitted to each Tenderer the Notification of Intention to Enter into a Contract to the successful Tenderer.

44. Debriefing by the Procuring Entity

44.1 On receipt of the Procuring Entity's Notification of Intention to Enter into a Contract referred to in ITT 42, an unsuccessful tenderer may make a written request to the Procuring Entity for a debriefing on specific issues or concerns regarding their tender. The Procuring Entity shall provide the debriefing within five days of receipt of the request.

44.2 Debriefings of unsuccessful Tenderers may be done in writing or verbally. The Tenderer shall bear its own costs of attending such a debriefing meeting.

45. Letter of Award

Prior to the expiry of the Tender Validity Period and upon expiry of the Standstill Period specified in ITT 43, upon addressing a complaint that has been filed within the Standstill Period, the Procuring Entity shall transmit the Letter of Award to the successful Tenderer. The letter of award shall request the successful tenderer to furnish the Performance Security within 21 days of the date of the letter.

46. Signing of Contract

46.1 Upon the expiry of the fourteen days of the Notification of Intention to Enter into a Contract and upon the parties meeting their respective statutory requirements, the Procuring Entity shall send the successful Tenderer the Contract Agreement.

46.2 Within fourteen (14) days of receipt of the Contract Agreement, the successful Tenderer shall sign, date, and return it to the Procuring Entity.

46.3 The written contract shall be entered into within the period specified in the notification of award and before expiry of the tender validity period.

47. Performance Security

47.1 Within twenty-one (21) days of the receipt of the Letter of Acceptance from the Procuring Entity, the successful Tenderer, if required, shall furnish the Performance Security in accordance with GCC 18, using for that purpose the Performance Security Form included in Section VIII, Contract Forms. If the Performance Security furnished by the successful Tenderer is in the form of a bond, it shall be issued by a bonding or insurance company that has been determined by the successful Tenderer to be acceptable to the Procuring Entity. A foreign institution providing a bond shall have a correspondent financial institution located in Kenya, unless the Procuring Entity has agreed in writing that a correspondent financial institution is not required.

47.2 Failure of the successful Tenderer to submit the above-mentioned Performance Security or sign the Contract shall constitute sufficient grounds for the annulment of the award and forfeiture of the Tender Security. In that event the Procuring Entity may award the Contract to the Tenderer offering the next lowest Evaluated Tender.

47.3 Performance security is required for this Tender.

48. Publication of Procurement Contract

48.1 Within fourteen days after signing the contract, the Procuring Entity shall publish and publicize the awarded contract at its notice boards, entity website, and on the Website of the Authority in the manner and format prescribed by the Authority. At the minimum, the notice shall contain the following information:

- a) name and address of the Procuring Entity;
- b) name and reference number of the contract being awarded, a summary of its scope and the selection method used;
- c) the name of the successful Tenderer, the final total contract price, the contract duration;
- d) dates of signature, commencement and completion of contract;
- e) names of all Tenderers that submitted Tenders, and their Tender prices as read out at Tender opening.

49. Procurement Related Complaints and Administrative Review

49.1 The procedures for making a Procurement-related Complaint are as specified in the TDS.

49.2 A request for administrative review shall be made in the form provided under Section VIII, Contract Forms.

Section II - Tender Data Sheet

The following data complete, supplement or amend the provisions of Section I, Instructions to Tenderers. Whenever there is a conflict, the provisions in the Tender Data Sheet shall prevail over those in Section I, Instructions to Tenderers.

<table>
<tr><th>ITT Reference</th><th>Tender Data Sheet entry</th></tr>
<tr><td>ITT 1.1</td><td>Procuring Entity: Ministry of Health
Tender Name: Supply and delivery of business laptops
Tender Reference No: TND-MOH-2027-033
Number of lots (contracts): One (1) award package.</td></tr>
<tr><td>ITT 1.2(a)</td><td>The electronic-procurement system used by the Procuring Entity is KenTender, accessible at https://tenders.kentender.go.ke. The system manages Tender Document access, clarification requests and responses, Tender submission and electronic Tender opening for this Tender.</td></tr>
<tr><td>ITT 3.1</td><td>No maximum number of Joint Venture members is prescribed.</td></tr>
<tr><td>ITT 3.7</td><td>The list of debarred firms and individuals is available from the PPRA website www.ppra.go.ke.</td></tr>
<tr><td>ITT 3.11</td><td>Not applicable. No category-specific registration authority is required for this Tender.</td></tr>
<tr><td>ITT 6.1</td><td>Address for clarification requests: Ministry of Health Procurement Office, procurement@moh.example.test
Clarification deadline: 27 May 2027, 17:00 EAT
Responses will be published through KenTender at https://tenders.kentender.go.ke.</td></tr>
<tr><td>ITT 6.2 - 6.3</td><td>No pre-tender meeting will be held for this Tender.</td></tr>
<tr><td>ITT 6.5</td><td>Minutes of the pre-tender meeting, if any, will be published through Ministry of Health Procurement Office, procurement@moh.example.test.</td></tr>
<tr><td>ITT 13.8(a)(i)&(iii); 13.8(b)(i)-(ii)</td><td>Final destination for each item:<table><tr><th>Item</th><th>Final destination</th></tr><tr><td>Business laptops</td><td>Ministry of Health Headquarters, Afya House, Nairobi</td></tr></table></td></tr>
<tr><td>ITT 15.4</td><td>Minimum warranty period for each item:<table><tr><th>Item</th><th>Minimum warranty</th></tr><tr><td>Business laptops</td><td>36 months</td></tr></table></td></tr>
<tr><td>ITT 16.2(a)</td><td>Manufacturer's Authorization is required. Tenderers that do not manufacture or produce the Goods offered shall submit the Manufacturer's Authorization Form.</td></tr>
<tr><td>ITT 16.2(b)</td><td>After-sales support evidence is required: Kenya service-centre details and escalation contacts.</td></tr>
<tr><td>ITT 17.1</td><td>Tender Validity period: 120 days from the Tender submission deadline.</td></tr>
<tr><td>ITT 18.1</td><td>A Tender Security is required, in the amount of 500,000.00 KES, in a form acceptable for upload through the electronic-procurement system (a digitally signed or duly certified instrument). The Tenderer shall also deliver the original of the Tender Security to the Procuring Entity before the Tender submission deadline.</td></tr>
<tr><td>ITT 19.3</td><td>Written confirmation authorising the signatory of the Tender to commit the Tenderer shall be attached to the Tender, as completed by the Tenderer in the Form of Tender.</td></tr>
<tr><td>ITT 21.1</td><td>Submission deadline: 5 June 2027, 11:00 EAT. Tenders shall be submitted electronically through KenTender at https://tenders.kentender.go.ke, addressed to Ministry of Health Procurement Office, procurement@moh.example.test.</td></tr>
<tr><td>ITT 24.1</td><td>Tender opening: 5 June 2027, 11:00 EAT, conducted electronically through KenTender immediately following the submission deadline.</td></tr>
<tr><td>ITT 29.3</td><td>A quantifiable nonmaterial non-conformity related to the Tender Price shall be adjusted, for comparison purposes only, using the average price of the item or component as quoted in other substantially responsive Tenders; if that price cannot be derived, the Procuring Entity shall use its best estimate.</td></tr>
<tr><td>ITT 33.2</td><td>Price evaluation will be conducted for the Tender as a single award package, covering all items in the Section V.1 Goods and Delivery Schedule together.</td></tr>
<tr><td>ITT 47.3</td><td>Performance Security is required, in the amount of 10% of the Contract Price.</td></tr>
<tr><td>ITT 49.1</td><td>Procurement-related complaints shall be addressed to Ministry of Health Procurement Office, procurement@moh.example.test, and administrative review requests shall be made using the Form No. 2 - Request for Review in Section VIII, Contract Forms.</td></tr>
</table>

Section III - Evaluation and Qualification Criteria

1. General Provisions

1.1 Wherever a Tenderer is required to state a monetary amount, Tenderers should indicate the Kenya Shilling equivalent using the rate of exchange determined as follows:

- a) For business turnover or financial data required for each year - the exchange rate prevailing on the last day of the respective calendar year in which the amounts for that year were originally established;
- b) Value of a single contract - the exchange rate prevailing on the date of the contract signature;
- c) Exchange rates shall be taken from the publicly available source identified in ITT 14.3. Any error in determining the exchange rates in the Tender may be corrected by the Procuring Entity.

1.2 This section contains the criteria that the Procuring Entity shall use to evaluate tenders and qualify tenderers. No other factors, methods or criteria shall be used other than those specified in this tender document. The Tenderer shall provide all the information requested in the forms included in Section IV, Tendering Forms.

2. Evaluation of Tenders (ITT 33)

2.1 Successful Tender

The Procuring Entity shall use the criteria and methodologies listed in this Section to evaluate Tenders. By applying these criteria and methodologies, the Procuring Entity shall determine the successful Tender which has been determined to:

- a) be substantially responsive to the tender documents;
- b) offer the lowest evaluated cost to the Procuring Entity for all items of Goods to be procured, based on the single award package; and
- c) be offered by a Tenderer that substantially meets the qualification criteria applicable for the Contract.

2.2 Preliminary Examination for Determination of Responsiveness

The Procuring Entity will examine all tenders to ensure they meet in all respects the eligibility criteria and other mandatory requirements in the ITT, and that the tender is complete in all aspects in meeting the requirements provided for in the submission and eligibility stage of evaluation. Tenders that do not pass the Preliminary Examination will be considered non-responsive and will not be considered further.

Reserved procurement under regulation 149

This Tender is reserved for enterprises owned by youth, in accordance with section 155 of the Public Procurement and Asset Disposal Act, 2015 and regulation 149 of the Public Procurement and Asset Disposal Regulations, 2020. Only a Tenderer that holds a valid registration under the Access to Government Procurement Opportunities programme in the category **Youth** at the Tender submission deadline is eligible. The Tenderer shall submit its valid registration certificate with its Tender. A Tender from a Tenderer that does not hold the required registration shall be determined non-responsive at the Preliminary Examination and shall not be considered further.

2.2.1 Evaluation of Technical Aspects of the Tender

The Procuring Entity shall evaluate the Technical aspects of the Tender to determine compliance with the Procuring Entity's requirements under Section V, Schedule of Requirements, and whether the Tenders are substantially responsive to the Technical Requirements published in Section V.3, the Warranty and Support Requirements in Section V.4 and the Section V.1 Goods and Delivery Schedule, on a pass/fail basis. Each technical requirement is assessed individually against the Tenderer's Technical Compliance Response in Section IV; a Tender that does not comply with any mandatory technical requirement is non-responsive.

2.2.2 Evaluation of Commercial Terms and Conditions of the Tender (ITT 33.1(a))

The Procuring Entity shall determine whether the Tenders are substantially responsive to the Commercial and Contractual Terms and Conditions published in Section II, Tender Data Sheet and Section VII, Special Conditions of Contract (including Performance Security, and Payment and delivery schedules), on a pass/fail basis.

2.2.3 Evaluation Criteria (Other Factors)

No additional evaluation factors beyond the Tender Price apply to this Tender. Evaluation proceeds directly from responsiveness and technical compliance to comparison of the Tender Price and determination of the lowest evaluated responsive Tender, in accordance with ITT 33 and ITT 34.

3. Margin of Preference

A margin of preference does not apply to this Tender. This Tender is procured on the basis of national competitive tendering, for which no margin of preference is granted.

4. Post-Qualification of Tenderers (ITT 37)

This Tender was not subject to pre-qualification.

4.1 Post-Qualification Criteria (ITT 37.1)

The tender that has been determined to be the lowest evaluated tenderer shall be considered for contract award, subject to meeting each of the qualification requirements specified below (post-qualification criteria applied on a GO/NO GO basis). The Procuring Entity shall carry out the post-qualification of the Tenderer in accordance with ITT 37, using only the requirements specified herein. Requirements not included below shall not be used in the evaluation of the Tenderer's qualifications.

4.2 Qualification Requirements

Requirement	Evidence required
Manufacturer's Authorization	Required. Proves the Tenderer is duly authorised by the manufacturer or producer of the Goods offered.
Technical datasheets or brochures	Required. Proves the Goods offered conform to the Technical Requirements published in Section V.3.
Warranty confirmation	Required. The Tenderer confirms, in its Technical Compliance Response, that the Goods offered carry the minimum warranty of 36 months stated in Section V.4 and that the support obligations stated there will be met.
Comparable supply experience	Required: at least 2 comparable supply contract(s) completed within the last 5 years. Proves the Tenderer's capacity to perform a contract of this nature and size.
After-sales support evidence	Required: Kenya service-centre details and escalation contacts. Proves the Tenderer's capacity to provide after-sales support for the Goods offered.
Additional evidence	No additional evidence item is required for this Tender.

Section IV - Tendering Forms

Form of Tender

All italicized text is to help the Tenderer in preparing this form. The Tenderer must prepare this Form of Tender on stationery with its letterhead clearly showing the Tenderer's complete name and business address. This is a mandatory requirement. The Tenderer must complete and sign the Certificate of Independent Tender Determination and the Self-Declaration Forms of the Tenderer as listed under (s) below.

Date of this Tender submission: _____

Tender Name and Identification: Supply and delivery of business laptops (TND-MOH-2027-033)

To: Ministry of Health

- a) No reservations: We have examined and have no reservations to the Tendering document, including Addenda issued in accordance with Instructions to Tenderers (ITT 7);
- b) Eligibility: We meet the eligibility requirements and have no conflict of interest in accordance with ITT 3;
- c) Tender Security: We confirm that we have furnished the Tender Security required in accordance with ITT 18;
- d) Conformity: We offer to supply in conformity with the Tendering document and in accordance with the Delivery Schedules specified in the Schedule of Requirements the following Goods and Related Services:

Item	Description	Quantity	Unit
1	Business laptops	250	Each

- e) Tender Price: The total price of our Tender, excluding any discounts offered in item (f) below, is: _____ (in words and figures, indicating the currency);
- f) Discounts: The discounts offered and the methodology for their application are: _____ (or “none”);
- g) Tender Validity Period: Our Tender shall be valid for the period specified in TDS ITT 17.1 (120 days) from the date fixed for the Tender submission deadline specified in TDS ITT 21.1, and it shall remain binding upon us and may be accepted at any time before the expiration of that period;
- h) Performance Security: If our Tender is accepted, we commit to obtain a performance security in accordance with the Tendering document;
- i) One Tender per Tenderer: We are not submitting any other Tender(s) as an individual tenderer, and we are not participating in any other Tender(s) as a Joint Venture member, or as a subcontractor, and meet the requirements of ITT 3.9;
- j) Suspension and Debarment: We, along with any of our subcontractors, suppliers, consultants, manufacturers, or service providers for any part of the contract, are not subject to, and not controlled by any entity or individual that is subject to, a temporary suspension or a debarment imposed by the Procuring Entity. Further, we are not ineligible under the Kenya laws or official regulations or pursuant to a decision of the United Nations Security Council;
- k) State-owned enterprise or institution: _____ (Tenderer states whether or not it is a state-owned enterprise or institution and, if so, confirms that it meets the requirements of ITT 3.8);
- l) Commissions, gratuities, fees: We have paid, or will pay, the following commissions, gratuities, or fees with respect to the Tendering process or execution of the Contract: _____ (or “none”);
- m) Binding Contract: We understand that this Tender, together with your written acceptance thereof included in your Letter of Acceptance, shall constitute a binding contract between us, until a formal contract is prepared and executed;
- n) Procuring Entity Not Bound to Accept: We understand that you are not bound to accept the lowest evaluated cost Tender, the Best Evaluated Tender or any other Tender that you may receive; and
- o) Fraud and Corruption: We hereby certify that we have taken steps to ensure that no person acting for us or on our behalf engages in any type of Fraud and Corruption.
- p) Code of Ethical Conduct: We undertake to adhere by the Code of Ethics for Persons Participating in Public Procurement and Asset Disposal, copy available from Ministry of Health Procurement Office, procurement@moh.example.test, during the procurement process and the execution of any resulting contract.
- q) Collusive practices: We hereby certify and confirm that the tender is genuine, non-collusive and made with the intention of accepting the contract if awarded. To this effect we have signed the “Certificate of Independent Tender Determination” attached below.
- r) Beneficial Ownership Information: We commit to provide to the procuring entity the Beneficial Ownership Information in conformity with the Beneficial Ownership Disclosure Form upon receipt of notification of intention to enter into a contract in the event we are the successful tenderer in this subject procurement proceeding.
- s) We, the Tenderer, have duly completed, signed and stamped the following Forms as part of our Tender:
  - i. Tenderer's Eligibility; Confidential Business Questionnaire - to establish we are not in any conflict of interest;
  - ii. Certificate of Independent Tender Determination - to declare that we completed the tender without colluding with other tenderers;
  - iii. Self-Declaration of the Tenderer - to declare that we will, if awarded a contract, not engage in any form of fraud and corruption; and
  - iv. Declaration and Commitment to the Code of Ethics for Persons Participating in Public Procurement and Asset Disposal.

Further, we confirm that we have read and understood the full content and scope of fraud and corruption as informed in “Appendix 1 - Fraud and Corruption” attached to the Form of Tender.

Name of the tenderer: _____

Name of the person duly authorized to sign the Tender on behalf of the tenderer: _____

Title of the person signing the Tender: _____

Signature of the person named above: _____

Date signed: _____

Certificate of Independent Tender Determination

I, the undersigned, in submitting the accompanying Letter of Tender to Ministry of Health for Supply and delivery of business laptops (TND-MOH-2027-

033), in response to the request for tenders, do hereby make the following statements that I certify to be true and complete in every respect:

I certify, on behalf of the Tenderer, that:

1. I have read and I understand the contents of this Certificate;
2. I understand that the Tender will be disqualified if this Certificate is found not to be true and complete in every respect;
3. I am the authorized representative of the Tenderer with authority to sign this Certificate, and to submit the Tender on behalf of the Tenderer;
4. For the purposes of this Certificate and the Tender, I understand that the word “competitor” shall include any individual or organization, other than the Tenderer, whether or not affiliated with the Tenderer, who:
    - a) has been requested to submit a Tender in response to this request for tenders;
    - b) could potentially submit a tender in response to this request for tenders, based on their qualifications, abilities or experience;
5. The Tenderer discloses that (check one of the following, as applicable):
    - a) The Tenderer has arrived at the Tender independently from, and without consultation, communication, agreement or arrangement with, any competitor;
    - b) the Tenderer has entered into consultations, communications, agreements or arrangements with one or more competitors regarding this request for tenders, and the Tenderer discloses, in the attached document(s), complete details thereof, including the names of the competitors and the nature of, and reasons for, such consultations, communications, agreements or arrangements;
6. In particular, without limiting the generality of paragraphs (5)(a) or (5)(b) above, there has been no consultation, communication, agreement or arrangement with any competitor regarding:
    - a) prices;
    - b) methods, factors or formulas used to calculate prices;
    - c) the intention or decision to submit, or not to submit, a tender; or
    - d) the submission of a tender which does not meet the specifications of the request for Tenders; except as specifically disclosed pursuant to paragraph (5)(b) above;
7. In addition, there has been no consultation, communication, agreement or arrangement with any competitor regarding the quality, quantity, specifications or delivery particulars of the works or services to which this request for tenders relates, except as specifically authorized by the procuring authority or as specifically disclosed pursuant to paragraph (5)(b) above;
8. the terms of the Tender have not been, and will not be, knowingly disclosed by the Tenderer, directly or indirectly, to any competitor, prior to the date and time of the official tender opening, or of the awarding of the Contract, whichever comes first, unless otherwise required by law or as specifically disclosed pursuant to paragraph (5)(b) above.

Name: _____

Title: _____

Date: _____

[Name, title and signature of authorized agent of Tenderer and Date]

Self-Declaration Forms

FORM SD1 - Self-Declaration that the Person/Tenderer is not Debarred

IN THE MATTER OF THE PUBLIC PROCUREMENT AND ASSET DISPOSAL ACT 2015.

I _____ of Post Office Box _____ being a resident of _____ in the Republic of _____ do hereby make a statement as follows:-

1. THAT I am the Company Secretary/Chief Executive/Managing Director/Principal Officer/Director of _____ (name of the Company) who is a Bidder in respect of Tender No. TND-MOH-2027-033 for Supply and delivery of business laptops for Ministry of Health and duly authorized and competent to make this statement.
2. THAT the aforesaid Bidder, its Directors and subcontractors have not been debarred from participating in procurement proceeding under Part IV of the Act.
3. THAT what is deponed to herein above is true to the best of my knowledge, information and belief.

(Title) _____ (Signature) _____ (Date) _____

Bidder Official Stamp

FORM SD2 - Self-Declaration that the Person/Tenderer will not Engage in Corrupt or Fraudulent Practice

I, _____ of P.O. Box _____ being a resident of _____ in the Republic of _____ do hereby make a statement as follows:-

1. THAT I am the Chief Executive/Managing Director/Principal Officer/Director of _____ (name of the Company) who is a Bidder in respect of Tender No. TND-MOH-2027-033 for Supply and delivery of business laptops for Ministry of Health and duly authorized and competent to make this statement.
2. THAT the aforesaid Bidder, its servants and/or agents/subcontractors will not engage in any corrupt or fraudulent practice and has not been requested to pay any inducement to any member of the Board, Management, Staff and/or employees and/or agents of Ministry of Health, which is the procuring entity.
3. THAT the aforesaid Bidder, its servants and/or agents/subcontractors have not offered any inducement to any member of the Board, Management, Staff and/or employees and/or agents of Ministry of Health.
4. THAT the aforesaid Bidder will not engage/has not engaged in any corrosive practice with other bidders participating in the subject tender.
5. THAT what is deponed to herein above is true to the best of my knowledge information and belief.

(Title) _____ (Signature) _____ (Date) _____

Bidder's Official Stamp

Declaration and Commitment to the Code of Ethics

I, _____ (Person) on behalf of (Name of the Business/Company/Firm) _____ declare that I have read and fully understood the contents of the Public Procurement & Asset Disposal Act, 2015, Regulations and the Code of Ethics for persons participating in Public Procurement and Asset Disposal and my responsibilities under the Code.

I do hereby commit to abide by the provisions of the Code of Ethics for persons participating in Public Procurement and Asset Disposal.

Name of Authorized signatory: _____

Sign: _____

Position: _____

Office address: _____ Telephone: _____

E-mail: _____

Name of the Firm/Company: _____

Date: _____

(Company Seal/Rubber Stamp where applicable)

Witness

Name: _____

Sign: _____

Date: _____

Appendix 1 - Fraud and Corruption

(Appendix 1 shall not be modified)

1. Purpose

1.1 The Government of Kenya's Anti-Corruption and Economic Crime laws and their sanction's policies and procedures, Public Procurement and Asset Disposal Act (No. 33 of 2015) and its Regulation, and any other Kenya's Acts or Regulations related to Fraud and Corruption, and similar offences, shall apply with respect to Public Procurement Processes and Contracts that are governed by the laws of Kenya.

2. Requirements

2.1 The Government of Kenya requires that all parties including Procuring Entities, Tenderers (applicants/proposers), Consultants, Contractors and Suppliers; any Sub-contractors, Sub-consultants, Service providers or Suppliers; any Agents (whether declared or not); and any of their Personnel, involved and engaged in procurement under Kenya's Laws and Regulation, observe the highest standard of ethics during the procurement process, selection and contract execution of all contracts, and refrain from Fraud and Corruption and fully comply with Kenya's laws and Regulations as per paragraph 1.1 above.

2.2 Kenya's Public Procurement and Asset Disposal Act (No. 33 of 2015) under Section 66 describes rules to be followed and actions to be taken in dealing with Corrupt, Coercive, Obstructive, Collusive or Fraudulent practices, and Conflicts of Interest in procurement including consequences for offences committed. A few of the provisions noted below highlight Kenya's policy of no tolerance for such practices and behavior:

1. a person to whom this Act applies shall not be involved in any corrupt, coercive, obstructive, collusive or fraudulent practice; or conflicts of interest in any procurement or asset disposal proceeding;
2. A person referred to under subsection (1) who contravenes the provisions of that sub-section commits an offence;
3. Without limiting the generality of subsections (1) and (2), the person shall be -
    - a) disqualified from entering into a contract for a procurement or asset disposal proceeding; or
    - b) if a contract has already been entered into with the person, the contract shall be voidable;
4. The voiding of a contract by the procuring entity under subsection (7) does not limit any legal remedy the procuring entity may have;
5. An employee or agent of the procuring entity or a member of the Board or committee of the procuring entity who has a conflict of interest with respect to a procurement:-
    - a) shall not take part in the procurement proceedings;
    - b) shall not, after a procurement contract has been entered into, take part in any decision relating to the procurement or contract; and
    - c) shall not be a subcontractor for the bidder to whom was awarded the contract, or a member of the group of bidders to whom the contract was awarded, but the subcontractor appointed shall meet all the requirements of this Act;
6. An employee, agent or member described in subsection (1) who refrains from doing anything prohibited under that subsection, but for that subsection, would have been within his or her duties shall disclose the conflict of interest to the procuring entity;
7. If a person contravenes subsection (1) with respect to a conflict of interest described in subsection (5)(a) and the contract is awarded to the person or his relative or to another person in whom one of them had a direct or indirect pecuniary interest, the contract shall be terminated and all costs incurred by the public entity shall be made good by the awarding officer, etc.

The Entity:

- a) Defines broadly, for the purposes of the above provisions, the terms set forth below as follows:
    - i) “corrupt practice” is the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party;
    - ii) “fraudulent practice” is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain financial or other benefit or to avoid an obligation;
    - iii) “collusive practice” is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;

    - iv) “coercive practice” is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;
    - v) “obstructive practice” is deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede investigation by the Public Procurement Regulatory Authority (PPRA) or any other appropriate authority appointed by the Government of Kenya into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation, or acts intended to materially impede the exercise of the PPRA's or the appointed authority's inspection and audit rights provided for under paragraph 2.3 e. below.
- b) Defines more specifically, in accordance with the above procurement Act provisions set forth for fraudulent and collusive practices, that “fraudulent practice” includes a misrepresentation of fact in order to influence a procurement or disposal process or the exercise of a contract to the detriment of the procuring entity or the tenderer or the contractor, and includes collusive practices amongst tenderers prior to or after tender submission designed to establish tender prices at artificial non-competitive levels and to deprive the procuring entity of the benefits of free and open competition.
- c) Rejects a proposal for award of a contract if PPRA determines that the firm or individual recommended for award, any of its personnel, or its agents, or its sub-consultants, sub-contractors, service providers, suppliers and/or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;
- d) Pursuant to Kenya's above stated Acts and Regulations, may sanction or debar or recommend to appropriate authority(ies) for sanctioning and debarment of a firm or individual, as applicable under the Acts and Regulations;
- e) Requires that a clause be included in Tender documents and Request for Proposal documents requiring (i) Tenderers (applicants/proposers), Consultants, Contractors, and Suppliers, and their Sub-contractors, Sub-consultants, Service providers, Suppliers, Agents' personnel, permit the PPRA or any other appropriate authority appointed by the Government of Kenya to inspect all accounts, records and other documents relating to the procurement process, selection and/or contract execution, and to have them audited by auditors appointed by the PPRA or any other appropriate authority; and
- f) Pursuant to Section 62 of the above Act, requires Applicants/Tenderers to submit along with their Applications/Tenders/Proposals a “Self-Declaration Form” as included in the procurement document declaring that they and all parties involved in the procurement process and contract execution have not engaged/will not engage in any corrupt or fraudulent practices.

Tenderer Information Form

The Tenderer shall fill in this Form in accordance with the instructions indicated below. No alterations to its format shall be permitted and no substitutions shall be accepted.

Date: _____

Tender Name and Identification: Supply and delivery of business laptops (TND-MOH-2027-033)

1. Tenderer's Name	_____
2. In case of JV, legal name of each member	_____
3. Tenderer's actual or intended country of registration	_____
4. Tenderer's year of registration	_____
5. Tenderer's Address in country of registration	_____
6. Tenderer's Authorized Representative Information (Name, Address, Telephone/Fax, Email)	_____
7. Attached are copies of original documents of: for Kenyan Tenderers, a current tax clearance certificate or tax exemption certificate issued by the Kenya Revenue Authority in accordance with ITT 3.14; Articles of Incorporation (or equivalent documents of constitution or association), and/or documents of registration of the legal entity named above, in accordance with ITT 3.4; in case of JV, letter of intent to form JV or JV agreement, in accordance with ITT 3.1; in case of state-owned enterprise or institution, in accordance with ITT 4.6, documents establishing (i) legal and financial autonomy, (ii) operation under commercial law, and (iii) that the tenderer is not under the supervision of the Procuring Entity	_____
8. Included are the organizational chart and a list of Board of Directors	_____

Tenderer's Eligibility - Confidential Business Questionnaire Form

The Tenderer is instructed to complete the particulars required in this Form, one form for each entity if the Tenderer is a JV. The Tenderer is further reminded that it is an offence to give false information on this Form.

A. Tenderer's details

Item	Description
1. Name of the Procuring Entity	Ministry of Health
2. Name of the Tenderer	_____
3. Full Address and Contact Details of the Tenderer (Country, City, Location, Building, Floor, Postal Address, Contact person name and email)	_____
4. Reference Number of the Tender	TND-MOH-2027-033
5. Date and Time of Tender Opening	5 June 2027, 11:00 EAT
6. Current Trade License No and Expiring date	_____
7. Maximum value of business which the Tenderer handles	_____

Sole Proprietor, Partnership or Registered Company detail

Sole Proprietor: Name in full _____ Age _____ Nationality _____ Country of Origin _____ Citizenship _____

Partnership, provide the following details:

	Name of Partner	Nationality	Citizenship	% Shares owned
1	_____	_____	_____	_____
2	_____	_____	_____	_____
3	_____	_____	_____	_____

Registered Company, provide the following details: Private or public company _____; Nominal issued capital (Kenya Shillings equivalent) _____; Issued capital (Kenya Shillings equivalent) _____.

Give details of Directors as follows:

	Name of Director	Nationality	Citizenship	% Shares owned
1	_____	_____	_____	_____
2	_____	_____	_____	_____
3	_____	_____	_____	_____

(e) Disclosure of Interest

(i) Are there any person/persons in Ministry of Health who has an interest or relationship in this firm? Yes/No _____. If yes, provide names, designation in the Procuring Entity and the interest or relationship with the Tenderer.

(ii) Conflict of interest disclosure - for each of the following, the Tenderer discloses Yes/No and, if Yes, the details of the relationship:

1. Tenderer is directly or indirectly controlled by or is under common control with another tenderer.
2. Tenderer receives or has received any direct or indirect subsidy from another tenderer.
3. Tenderer has the same legal representative as another tenderer
4. Tender has a relationship with another tenderer, directly or through common third parties that puts it in a position to influence the tender of another tenderer, or influence the decisions of the Procuring Entity regarding this tendering process.
5. Any of the Tenderer's affiliates participated as a consultant in the preparation of the design or technical specifications of the works that are the subject of the tender.
6. Tenderer would be providing goods, works, non-consulting services or consulting services during implementation of the contract specified in this Tender Document.
7. Tenderer has a close business or family relationship with a professional staff of the Procuring Entity who are directly or indirectly involved in the preparation of the Tender document or specifications of the Contract, and/or the Tender evaluation process of such contract.
8. Tenderer has a close business or family relationship with a professional staff of the Procuring Entity who would be involved in the implementation or supervision of the Contract.
9. Has the conflict stemming from such relationship stated in item 7 and 8 above been resolved in a manner acceptable to the Procuring Entity throughout the tendering process and execution of the Contract?

(f) Certification

On behalf of the Tenderer, I certify that the information given above is correct.

Full Name: _____

Title or Designation: _____

(Signature) _____ (Date) _____

Tenderer's JV Members Information Form

The Tenderer shall fill in this Form in accordance with the instructions indicated below. The following table shall be filled in for the tenderer and for each member of a Joint Venture. No maximum number of Joint Venture members is prescribed for this Tender.

Date: _____

Tender Name and Identification: Supply and delivery of business laptops (TND-MOH-2027-033)

1. Tenderer's Name	_____
2. Tenderer's JV Member's name	_____
3. Tenderer's JV Member's country of registration	_____
4. Tenderer's JV Member's year of registration	_____
5. Tenderer's JV Member's legal address in country of registration	_____
6. Tenderer's JV Member's Authorized Representative Information (Name, Address, Telephone/Fax, Email)	_____
7. Attached are copies of original documents of: Articles of Incorporation (or equivalent documents of constitution or association), and/or registration documents of the legal entity named above, in accordance with ITT 4.4; in case of a state-owned enterprise or institution, documents establishing legal and financial autonomy, operation in accordance with commercial law, and that they are not under the supervision of the Procuring Entity, in accordance with ITT 4.6	_____
8. Included are the organizational chart and a list of Board of Directors	_____

Price Schedule Forms

The Tenderer shall fill in these Price Schedule Forms in accordance with the instructions indicated. The list of line items in column 1 of the Price Schedules shall coincide with the List of Goods and Related Services specified by the Procuring Entity in the Schedule of Requirements.

Price Schedule - Goods

One schedule covers goods manufactured in Kenya, goods manufactured outside Kenya and already imported, and goods manufactured outside Kenya and to be imported. The Tenderer states the country of origin and import status for each line item and completes the columns applicable to that item; columns that do not apply to a particular item are marked N/A.

Line item	Description of Goods	Country of origin	Import status (Kenya-manufactured / already imported / to be imported)	Quantity and unit	Delivery date as defined by Incoterms	Unit price (EXW for Kenya-manufactured goods; CIP named place of destination for imported goods)	Customs duties and import taxes paid per unit (already-imported goods only; N/A otherwise)	Cost of local labour, raw materials and components from origin in Kenya, as % of unit price (Kenya-manufactured goods only; N/A otherwise)	Price per line item	Price per line item for inland transportation and other services required in Kenya to convey the Goods to their final destination specified in the TDS	Sales and other taxes payable per line item if Contract is awarded	Total Price per line item
1	Business laptops			250 Each								
										Total Tender Price (Goods)		

Name of tenderer: _____ Signature of tenderer: _____ Date: _____

Form of Tender Security - Option 1: Demand Bank Guarantee

Beneficiary: Ministry of Health

Request for Tenders No: TND-MOH-2027-033

Date: _____

Tender Guarantee No.: _____

Guarantor: _____

1. We have been informed that _____ (hereinafter called “the Applicant”) has submitted or will submit to the Beneficiary its Tender (hereinafter called “the Tender”) for the execution of Supply and delivery of business laptops under Request for Tenders No. TND-MOH-2027-033 (“the ITT”).
2. Furthermore, we understand that, according to the Beneficiary's conditions, Tenders must be supported by a Tender guarantee.
3. At the request of the Applicant, we, as Guarantor, hereby irrevocably undertake to pay the Beneficiary any sum or sums not exceeding in total an amount of 500,000.00 KES upon receipt by us of the Beneficiary's complying demand, supported by the Beneficiary's statement, whether in the demand itself or a separate signed document accompanying or identifying the demand, stating that either the Applicant:
   - (a) has withdrawn its Tender during the period of Tender validity set forth in the Applicant's Letter of Tender (“the Tender Validity Period”), or any extension thereto provided by the Applicant; or
   - (b) having been notified of the acceptance of its Tender by the Beneficiary during the Tender Validity Period or any extension thereto provided by the Applicant, (i) has failed to execute the contract agreement, or (ii) has failed to furnish the Performance Security.
4. This guarantee will expire: (a) if the Applicant is the successful Tenderer, upon our receipt of copies of the contract agreement signed by the Applicant and the Performance Security; or (b) if the Applicant is not the successful Tenderer, upon the earlier of (i) our receipt of a copy of the Beneficiary's notification to the Applicant of the results of the Tendering process; or (ii) thirty days after the end of the Tender Validity Period, namely by 2 November 2027.
5. Consequently, any demand for payment under this guarantee must be received by us at the office indicated above on or before that date.

[signature(s)]

Note: All italicized text is for use in preparing this form and shall be deleted from the final product.

Form of Tender Security - Option 2: Insurance Guarantee

Tender Guarantee No.: _____

1. Whereas _____ [Name of the tenderer] (hereinafter called “the tenderer”) has submitted its tender dated _____ [Date of submission of tender] for the Supply and delivery of business laptops (hereinafter called “the Tender”) for the execution of under Request for Tenders No. TND-MOH-2027-033 (“the ITT”).
2. KNOW ALL PEOPLE by these presents that WE _____ of _____ [Name of Insurance Company] having our registered office at _____ (hereinafter called “the Guarantor”), are bound unto Ministry of Health (hereinafter called “the Procuring Entity”) in the sum of 500,000.00 KES for which payment well and truly to be made to the said Procuring Entity, the Guarantor binds itself, its successors and assigns, jointly and severally, firmly by these presents.

   Sealed with the Common Seal of the said Guarantor this ___ day of _____ 20__.
3. NOW, THEREFORE, THE CONDITION OF THIS OBLIGATION is such that if the Applicant:

- a) has withdrawn its Tender during the period of Tender validity set forth in the Principal's Letter of Tender (“the Tender Validity Period”), or any extension thereto provided by the Principal; or
- b) having been notified of the acceptance of its Tender by the Procuring Entity during the Tender Validity Period or any extension thereto provided by the Principal; (i) failed to execute the Contract agreement; or (ii) has failed to furnish the Performance Security, in accordance with the Instructions to Tenderers (“ITT”) of the Procuring Entity's Tendering document,

then the guarantor undertakes to immediately pay to the Procuring Entity up to the above amount upon receipt of the Procuring Entity's first written demand, without the Procuring Entity having to substantiate its demand, provided that in its demand the Procuring Entity shall state that the demand arises from the occurrence of any of the above events, specifying which event(s) has occurred.

4. This guarantee will expire: (a) if the Applicant is the successful Tenderer, upon our receipt of copies of the contract agreement signed by the Applicant and the Performance Security; or (b) if the Applicant is not the successful Tenderer, upon the earlier of (i) our receipt of a copy of the Beneficiary's notification to the Applicant of the results of the Tendering process; or (ii) twenty-eight days after the end of the Tender Validity Period, namely by 31 October 2027.
5. Consequently, any demand for payment under this guarantee must be received by us at the office indicated above on or before that date.

_____ [Date] _____ [Signature of the Guarantor]

_____ [Witness] _____ [Seal]

Note: All italicized text is for use in preparing this form and shall be deleted from the final product.

Manufacturer's Authorization Form

The tenderer shall require the Manufacturer to fill in this Form in accordance with the instructions indicated. This letter of authorization should be on the letterhead of the Manufacturer and should be signed by a person with the proper authority to sign documents that are binding on the Manufacturer.

Date: _____

ITT No.: TND-MOH-2027-033

To: Ministry of Health

WHEREAS

We _____ (name of Manufacturer), who are official manufacturers of _____ (type of goods manufactured), having factories at _____ (full address of Manufacturer's factories), do hereby authorize _____ (name of tenderer) to submit a Tender the purpose of which is to provide the following Goods, manufactured by us: _____ (name and/or brief description of the Goods), and to subsequently negotiate and sign the Contract.

We hereby extend our full guarantee and warranty in accordance with Clause 28 of the General Conditions of Contract, with respect to the Goods offered by the above firm.

Signed: _____ (signature(s) of authorized representative(s) of the Manufacturer)

Name: _____

Title: _____

Dated on _____ day of _____, _____

Technical Compliance Response

The Tenderer shall complete one row for every technical requirement published in Section V.3. Compliance is stated as “Comply” or “Do not comply”; the offered value states the characteristic of the Goods offered in the unit shown; the evidence reference names the datasheet, brochure or certificate submitted where evidence is required. A requirement marked “Do not comply”, or left blank, renders the Tender non-responsive under Section III, paragraph 2.2.1.

Requirement ID	Requirement	Comparison	Required value	Applies to	Compliance (Comply / Do not comply)	Offered value	Comment	Evidence reference
TECH-001	Electrical compatibility	Required	Yes — suitable for Kenyan mains supply	All items				Required
TECH-002	New and unused equipment	Required	Yes	All items				Required
TECH-003	Memory	Minimum	16 GB	All items				Required
TECH-004	Storage capacity	Minimum	512 GB	All items				Required
TECH-005	Storage type	One of	NVMe SSD	All items				Required
TECH-006	Display size	Minimum	14.0 inches	All items				Required
TECH-007	Battery runtime	Minimum	8 hours	All items				Required
TECH-008	Processor requirement	Minimum	64-bit business-class processor, minimum 10 cores or equivalent benchmark	All items				Required
TECH-009	Operating-system compatibility	Required	Approved organisational Windows environment	All items				Required
TECH-010	Network connectivity	Required	Wi-Fi 6 and Bluetooth 5 or later	All items				Required
TECH-011	Required ports	Required	USB-C ×2; USB-A ×2; HDMI ×1	All items				Required

Warranty and support confirmation: We confirm that the Goods offered carry a minimum warranty of 36 months and that the support obligations stated in Section V.4 will be met. Confirmed: _____ (Yes / No)

Name of tenderer: _____ Signature of tenderer: _____ Date: _____

Acceptance Requirements Confirmation

The Tenderer confirms, by submitting its Tender, that the Goods will be delivered so as to satisfy each acceptance requirement published in Section V.6, and that the evidence type stated for each requirement will be made available at inspection and acceptance.

Acceptance ID	Check	Pass condition	Evidence type	Applies to
ACC-001	Quantity	Delivered quantities equal the authorised schedule	Inspection record	All items
ACC-002	Physical condition	No visible damage and all listed accessories are present	Inspection record	All items
ACC-003	Required specification	Every delivered unit complies with all mandatory technical rows	Inspection record	All items
ACC-004	Functional test	Each device powers on and completes the agreed basic functional test	Test result	All items
ACC-005	Documents received	Warranty and delivery documents are received and verified	Certificate	All items

Confirmed on behalf of the tenderer: _____ Signature: _____ Date: _____

Section V - Schedule of Requirements

V.1 List of Goods and Delivery Schedule

Item No.	Requisition item ID(s)	Description of Goods	Quantity	Unit	Final Destination	Latest Delivery Date	Minimum Warranty	Offered Delivery Date
1	RQI-001, RQI-002	Business laptops	250	Each	Ministry of Health Headquarters, Afya House, Nairobi	30 September 2027	36 months	

Where several authorised Requisition items share one specification, they are listed as one item with the combined quantity; every contributing Requisition item ID is shown. The "Offered Delivery Date" column is completed by the Tenderer at Tender submission.

V.2 List of Related Services and Completion Schedule

No Related Services are required under this Tender.

V.3 Technical Requirements

The Goods shall comply with every technical requirement listed below. Each requirement carries a stable requirement ID; the Tenderer responds to each requirement individually in the Technical Compliance Response in Section IV, and technical compliance is assessed requirement by requirement on a pass/fail basis under Section III, paragraph 2.2.1. Where a requirement names a brand, model or standard, an equivalent that meets or exceeds the stated characteristic is acceptable.

Requirement ID	Requirement	Comparison	Required value	Applies to
TECH-001	Electrical compatibility	Required	Yes — suitable for Kenyan mains supply	All items
TECH-002	New and unused equipment	Required	Yes	All items
TECH-003	Memory	Minimum	16 GB	All items
TECH-004	Storage capacity	Minimum	512 GB	All items
TECH-005	Storage type	One of	NVMe SSD	All items
TECH-006	Display size	Minimum	14.0 inches	All items
TECH-007	Battery runtime	Minimum	8 hours	All items
TECH-008	Processor requirement	Minimum	64-bit business-class processor, minimum 10 cores or equivalent benchmark	All items
TECH-009	Operating-system compatibility	Required	Approved organisational Windows environment	All items
TECH-010	Network connectivity	Required	Wi-Fi 6 and Bluetooth 5 or later	All items
TECH-011	Required ports	Required	USB-C ×2; USB-A ×2; HDMI ×1	All items

V.4 Warranty and Support Requirements

Minimum warranty	36 months from the date of delivery to and acceptance at the final destination, for every item supplied.
On-site support	Required. On-site support shall be provided within kenya for the duration of the warranty.
Maximum support response	8 hours from the Procuring Entity's report of a fault.
Manufacturer-backed support	Required. Warranty and support shall be backed by the manufacturer or its authorised service partner.
Support arrangements	Supplier to provide escalation and warranty-contact details.

V.5 Drawings and Supporting Materials

No drawings or supporting materials are published with this Tender. The requirements in this Section are complete in themselves.

V.6 Inspections, Tests and Acceptance Requirements

Inspections and tests of the Goods shall be conducted at Ministry of Health Headquarters, Afya House, Nairobi, in accordance with Section VI, General Conditions of Contract, Clause 26. The Goods are accepted only when every acceptance requirement below is satisfied and the stated evidence is provided.

Acceptance ID	Check	Pass condition	Evidence type	Applies to
ACC-001	Quantity	Delivered quantities equal the authorised schedule	Inspection record	All items
ACC-002	Physical condition	No visible damage and all listed accessories are present	Inspection record	All items
ACC-003	Required specification	Every delivered unit complies with all mandatory technical rows	Inspection record	All items
ACC-004	Functional test	Each device powers on and completes the agreed basic functional test	Test result	All items
ACC-005	Documents received	Warranty and delivery documents are received and verified	Certificate	All items

Section VI - General Conditions of Contract

1. Definitions

In the Conditions of Contract ("these Conditions"), which include Special Conditions, Parts A and B, and these General Conditions, the following words and expressions shall have the meanings stated. Words indicating persons or parties include corporations and other legal entities, except where the context requires otherwise.

- a) "Contract" means the Contract Agreement entered into between the Procuring Entity and the Supplier, together with the Contract Documents referred to therein, including all attachments, appendices, and all documents incorporated by reference therein.
- b) "Contract Documents" means the documents listed in the Contract Agreement, including any amendments thereto.
- c) "Contract Price" means the price payable to the Supplier as specified in the Contract Agreement, subject to such additions and adjustments thereto or deductions therefrom, as may be made pursuant to the Contract.
- d) "Day" means calendar day.
- e) "Completion" means the fulfilment of the Related Services by the Supplier in accordance with the terms and conditions set forth in the Contract.
- f) "GCC" means the General Conditions of Contract.
- g) "Goods" means all of the commodities, raw material, machinery and equipment, and/or other materials that the Supplier is required to supply to the Procuring Entity under the Contract.
- h) "Procuring Entity" means the Procuring Entity purchasing the Goods and Related Services, as specified in the SCC.
- i) "Related Services" means the services incidental to the supply of the goods, such as insurance, delivery, installation, commissioning, training and initial maintenance and other such obligations of the Supplier under the Contract.
- j) "SCC" means the Special Conditions of Contract.
- k) "Subcontractor" means any person, private or government entity, or a combination of the above, to whom any part of the Goods to be supplied or execution of any part of the Related Services is subcontracted by the Supplier.
- l) "Supplier" means the person, private or government entity, or a combination of the above, whose Tender to perform the Contract has been accepted by the Procuring Entity and is named as such in the Contract Agreement.
- m) "Base Date" means a date 30 days prior to the submission of tenders.
- n) "Laws" means all national legislation, statutes, ordinances, and regulations and by-laws of any legally constituted public authority.
- o) "Letter of Acceptance" means the letter of formal acceptance, signed by the Procuring Entity, including any annexed memoranda comprising agreements between and signed by both Parties.
- p) "Procuring Entity" means the Entity named in the Special Conditions of Contract.

2. Interpretation

2.1 If the context so requires it, singular means plural and vice versa.

- a) Unless inconsistent with any provision of the Contract, the meaning of any trade term and the rights and obligations of parties thereunder shall be as prescribed by Incoterms specified in the SCC.
- b) The terms EXW and CIP and other similar terms, when used, shall be governed by the rules prescribed in the current edition of Incoterms specified in the SCC and published by the International Chamber of Commerce in Paris, France.

3. Contract Documents

Subject to the order of precedence set forth in the Contract Agreement, all documents forming the Contract (and all parts thereof) are intended to be correlative, complementary, and mutually explanatory. The Contract Agreement shall be read as a whole. The documents forming the Contract shall be interpreted in the following order of priority:

- a) the Contract Agreement,
- b) the Letter of Acceptance,
- c) the General Conditions of Contract,
- d) Special Conditions of Contract,
- e) the Form of Tender,
- f) the Specifications and Schedules of the Drawings (if any), and
- g) the Schedules of Requirements, Price Schedule and any other documents forming part of the Contract.

4. Fraud and Corruption

3.1 The Supplier shall comply with anti-corruption laws and guidelines and the prevailing sanctions, policies and procedures as set forth in the Laws of Kenya.

3.2 The Supplier shall disclose any commissions, gratuity or fees that may have been paid or are to be paid to agents or any other person with respect to the Tendering process or execution of the Contract. The information disclosed must include at least the name and address of the agent or other party, the amount and currency, and the purpose of the commission, gratuity or fee.

4.1 Entire Agreement - The Contract constitutes the entire agreement between the Procuring Entity and the Supplier and supersedes all communications, negotiations and agreements (whether written or oral) of the parties with respect thereto made prior to the date of the Contract.

4.2 Amendment - No amendment or other variation of the Contract shall be valid unless it is in writing, is dated, expressly refers to the Contract, and is signed by a duly authorized representative of each party thereto.

4.3 Non-waiver

- a) Subject to GCC Sub-Clause 4.5(b) below, no relaxation, forbearance, delay, or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of time by either party to the other shall prejudice, affect, or restrict the rights of that party under the Contract, neither shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract.

- b) Any waiver of a party's rights, powers, or remedies under the Contract must be in writing, dated, and signed by an authorized representative of the party granting such waiver, and must specify the right and the extent to which it is being waived.

4.4 Severability - If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of the Contract.

5. Language

5.1 The Contract as well as all correspondence and documents relating to the Contract exchanged by the Supplier and the Procuring Entity, shall be written in the English Language. Supporting documents and printed literature that are part of the Contract may be in another language provided they are accompanied by an accurate and certified translation of the relevant passages in the English Language, in which case, for purposes of interpretation of the Contract, the English language translation shall govern.

5.2 The Supplier shall bear all costs of translation to the governing language and all risks of the accuracy of such translation, for documents provided by the Supplier.

6. Joint Venture, Consortium or Association

6.1 If the Supplier is a joint venture, consortium, or association, all of the parties shall be jointly and severally liable to the Procuring Entity for the fulfilment of the provisions of the Contract and shall designate one member of the joint venture, consortium, or association to act as a leader with authority to bind the joint venture, consortium, or association. The composition or the constitution of the joint venture, consortium, or association shall not be altered without the prior written consent of the Procuring Entity.

7. Eligibility

7.1 The Supplier and its Subcontractors shall have the nationality of an eligible country. A Supplier or Subcontractor shall be deemed to have the nationality of a country if it is a citizen or constituted, incorporated, or registered, and operates in conformity with the provisions of the laws of that country.

7.2 All Goods and Related Services to be supplied under the Contract shall have their origin in Eligible Countries. For the purpose of this Clause, origin means the country where the goods have been grown, mined, cultivated, produced, manufactured, or processed; or through manufacture, processing, or assembly, another commercially recognized article results that differs substantially in its basic characteristics from its components.

7.3 The Supplier, if a Kenyan firm, must submit with its tender a valid tax compliance certificate from the Kenya Revenue Authority.

8. Notices

8.1 Any notice given by one party to the other pursuant to the Contract shall be in writing to the address specified in the SCC. The term “in writing” means communicated in written form with proof of receipt.

8.2 A notice shall be effective when delivered or on the notice's effective date, whichever is later.

9. Governing Law

9.1 The Contract shall be governed by and interpreted in accordance with the laws of Kenya.

9.2 Throughout the execution of the Contract, the Supplier shall comply with the import of goods and services prohibitions in Kenya:

- a) where, as a matter of law, compliance or official regulations, Kenya prohibits commercial relations with that country or any import of goods from that country or any payments to any country, person, or entity in that country; or
- b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, Kenya prohibits any import of goods from that country or any payments to any country, person, or entity.

10. Settlement of Disputes

10.1 The Procuring Entity and the Supplier shall make every effort to resolve amicably by direct negotiation any disagreement or dispute arising between them under or in connection with the Contract. If, after thirty days from the commencement of such informal negotiations, the Parties are unable to resolve the dispute by mutual consultation, then either the Procuring Entity or the Supplier may give notice to the other party of its intention to commence arbitration, as hereinafter provided, as to the matter in dispute, and no arbitration in respect of this matter may be commenced unless such notice is given. Any dispute or difference in respect of which a notice of intention to commence arbitration has been given in accordance with this Clause shall be finally settled by arbitration. Arbitration may be commenced prior to or after delivery of the Goods under the Contract.

10.2 Arbitration proceedings shall be conducted as follows:

- 10.2.1 Any claim or dispute between the Parties arising out of or in connection with the Contract not settled amicably in accordance with Sub-Clause 10.1 shall be finally settled by arbitration.
- 10.2.2 No arbitration proceedings shall be commenced on any claim or dispute where notice of a claim or dispute has not been given by the applying party within thirty days of the occurrence or discovery of the matter or issue giving rise to the dispute.
- 10.2.3 Notwithstanding the issue of a notice as stated above, the arbitration of such a claim or dispute shall not commence unless an attempt has in the first instance been made by the parties to settle such claim or dispute amicably with or without the assistance of third parties. Proof of such attempt shall be required.
- 10.2.4 The Arbitrator shall, without prejudice to the generality of his powers, have powers to direct such measurements, computations, or valuations as may in his opinion be desirable in order to determine the rights of the parties and assess and award any sums which ought to have been the subject of or included in any due payments.
- 10.2.5 Neither Party shall be limited in the proceedings before the arbitrators to the evidence, or to the reasons for the dispute given in its notice of a claim or dispute.
- 10.2.6 Arbitration may be commenced prior to or after delivery of the goods. The obligations of the Parties shall not be altered by reason of any arbitration being conducted during the progress of the delivery of goods.

- 10.2.7 The terms of the remuneration of each or all the members of Arbitration shall be mutually agreed upon by the Parties when agreeing the terms of appointment. Each Party shall be responsible for paying one-half of this remuneration.

10.3 Arbitration Proceedings

- 10.3.1 Arbitration proceedings with national suppliers will be conducted in accordance with the Arbitration Laws of Kenya. In case of any claim or dispute, such claim or dispute shall be notified in writing by either party to the other with a request to submit it to arbitration and to concur in the appointment of an Arbitrator within thirty days of the notice. The dispute shall be referred to the arbitration and final decision of a person or persons to be agreed between the parties. Failing agreement to concur in the appointment of an Arbitrator, the Arbitrator shall be appointed, on the request of the applying party, by the Chairman or Vice Chairman of any of the following professional institutions: (i) Kenya National Chamber of Commerce; (ii) Chartered Institute of Arbitrators (Kenya Branch); (iii) The Law Society of Kenya.
- 10.3.2 The institution written to first by the aggrieved party shall take precedence over all other institutions.
- 10.3.3 Alternatively, the Parties may refer the matter to the Nairobi Centre for International Arbitration (NCIA) which offers a neutral venue for the conduct of national and international arbitration with commitment to providing institutional support to the arbitral process.

10.4 Arbitration with Foreign Suppliers

- 10.4.1 Arbitration with foreign suppliers shall be conducted in accordance with the arbitration rules of the United Nations Commission on International Trade Law (UNCITRAL); or with proceedings administered by the International Chamber of Commerce (ICC) and conducted under the ICC Rules of Arbitration; by one or more arbitrators appointed in accordance with said arbitration rules. The place of arbitration shall be a location specified in the SCC; and the arbitration shall be conducted in the language for communications defined in Sub-Clause 1.4 [Law and Language].

10.5 Alternatively, the Parties may refer the matter to the Nairobi Centre for International Arbitration (NCIA) which offers a neutral venue for the conduct of national and international arbitration with commitment to providing institutional support to the arbitral process.

10.6 Failure to Comply with Arbitrator's Decision

- 10.6.1 The award of such Arbitrator shall be final and binding upon the parties. In the event that a Party fails to comply with a final and binding Arbitrator's decision, then the other Party may, without prejudice to any other rights it may have, refer the matter to a competent court of law.

10.7 Contract operations continue - Notwithstanding any reference to arbitration herein:

- a) the parties shall continue to perform their respective obligations under the Contract unless they otherwise agree; and
- b) the Procuring Entity shall pay the Supplier any monies due the Supplier.

11. Inspections and Audit by the Procuring Entity

11.1 The Supplier shall keep, and shall cause its Subcontractors to keep, accurate and systematic accounts and records in respect of the Goods in such form and details as will clearly identify relevant time, changes and costs.

11.2 Pursuant to paragraph 2.2 of Instructions to Tenderers, the Supplier shall permit and shall cause its subcontractors to permit, the Procuring Entity and/or persons appointed by the Procuring Entity or by other statutory bodies of the Government to inspect the Site and/or the accounts and records relating to the procurement process, selection and/or contract execution, and to have such accounts and records audited by auditors appointed by the Procuring Entity. The Supplier's and its Subcontractors' attention is drawn to Sub-Clause 3.1 which provides, inter alia, that acts intended to materially impede the exercise of the Procuring Entity's inspection and audit rights constitute a prohibited practice subject to contract termination, as well as to a determination of ineligibility.

12. Scope of Supply

12.1 The Goods and Related Services to be supplied shall be as specified in the Schedule of Requirements.

13. Delivery and Documents

13.1 Subject to GCC Sub-Clause 33.1, the delivery of the Goods and completion of the Related Services shall be in accordance with the List of Goods and Delivery Schedule specified in the Supply Requirements. The details of shipping and other documents to be furnished by the Supplier are specified in the SCC.

14. Supplier's Responsibilities

14.1 The Supplier shall supply all the Goods and Related Services included in the Scope of Supply in accordance with GCC Clause 12, and the Delivery and Completion Schedule, as per GCC Clause 13.

15. Contract Price

15.1 Prices charged by the Supplier for the Goods supplied and the Related Services performed under the Contract shall not vary from the prices quoted by the Supplier in its Tender, with the exception of any price adjustments authorized in the SCC.

15.2 Where the contract price is different from the corrected tender price, in order to ensure the supplier is not paid less or more relative to the contract price (which would be the tender price), any partial payment valuation based on rates in the schedule of prices in the Tender, will be adjusted by a plus or minus percentage. The percentage already worked out during tender evaluation is worked out as follows: (corrected tender price - tender price)/tender price x 100.

16. Terms of Payment

16.1 The Supplier shall request for payment by submitting invoice(s), delivery note(s) and any other relevant documents as specified in the SCC to the Procuring Entity.

16.2 Payments shall be made promptly by the Procuring Entity, but not later than thirty (30) days after submission of an invoice by the Supplier, and after the Procuring Entity has accepted it.

16.3 Where a Procuring Entity rejects Goods and Related Services, in part or wholly, the Procuring Entity shall promptly inform the Supplier to collect, replace or rectify as appropriate and give reasons for rejection. The Supplier shall submit a fresh invoice, delivery note and any other relevant documents as specified in the SCC.

16.4 The currencies in which payments shall be made to the Supplier under this Contract shall be those in which the Tender price is expressed.

16.5 In the event that the Procuring Entity fails to pay the Supplier any payment by its due date or within the period set forth in the SCC, the Procuring Entity may pay to the Supplier interest on the amount of such delayed payment at the rate shown in the SCC, for the period of delay until payment has been made in full, whether before or after judgment or arbitrage award.

17. Taxes and Duties

17.1 The Supplier shall be entirely responsible for all taxes, duties, license fees, and other such levies incurred to deliver the Goods and Related Services to the Procuring Entity at the final delivery point.

17.3 If any tax exemptions, reductions, allowances or privileges may be available to the Supplier in Kenya, the Supplier shall inform the Procuring Entity and the Procuring Entity shall use its best efforts to enable the Supplier to benefit from any such tax savings to the maximum allowable extent.

18. Performance Security

18.1 If required as specified in the SCC, the Supplier shall, within twenty-eight (28) days of the notification of contract award, provide a performance security for the performance of the Contract in the amount specified in the SCC.

18.2 The proceeds of the Performance Security shall be payable to the Procuring Entity as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract.

18.3 As specified in the SCC, the Performance Security, if required, shall be denominated in the currency(ies) of the Contract, or in a freely convertible currency acceptable to the Procuring Entity; and shall be in one of the formats stipulated by the Procuring Entity in the SCC, or in another format acceptable to the Procuring Entity.

18.4 The Performance Security shall be discharged by the Procuring Entity and returned to the Supplier not later than thirty (30) days following the date of Completion of the Supplier's performance obligations under the Contract, including any warranty obligations, unless specified otherwise in the SCC.

19. Copyright

19.1 The copyright in all drawings, documents, and other materials containing data and information furnished to the Procuring Entity by the Supplier herein shall remain vested in the Supplier, or, if they are furnished to the Procuring Entity directly or through the Supplier by any third party, including suppliers of materials, the copyright in such materials shall remain vested in such third party.

20. Confidential Information

20.1 The Procuring Entity and the Supplier shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any documents, data, or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following completion or termination of the Contract. Notwithstanding the above, the Supplier may furnish to its Sub-Supplier such documents, data, and other information it receives from the Procuring Entity to the extent required for the Sub-Supplier to perform its work under the Contract, in which event the Supplier shall obtain from such Sub-Supplier an undertaking of confidentiality similar to that imposed on the Supplier under GCC Clause 20.

20.2 The Procuring Entity shall not use such documents, data, and other information received from the Supplier for any purposes unrelated to the contract. Similarly, the Supplier shall not use such documents, data, and other information received from the Procuring Entity for any purpose other than the performance of the Contract.

20.3 The obligation of a party under GCC Sub-Clauses 20.1 and 20.2 above, however, shall not apply to information that:

- a) the Procuring Entity or Supplier need to share with other arms of Government or other bodies participating in the financing of the Contract; such parties shall be disclosed in the SCC;
- b) now or hereafter enters the public domain through no fault of that party;
- c) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party; or
- d) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality.

20.4 The above provisions of GCC Clause 20 shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Supply or any part thereof.

20.5 The provisions of GCC Clause 20 shall survive completion or termination, for whatever reason, of the Contract.

21. Subcontracting

21.1 The Supplier shall notify the Procuring Entity in writing of all subcontracts awarded under the Contract if not already specified in the Tender. Such notification, in the original Tender or later, shall not relieve the Supplier from any of its obligations, duties, responsibilities, or liability under the Contract.

21.2 Subcontracts shall comply with the provisions of GCC Clauses 3 and 7.

22. Specifications and Standards

22.1 Technical Specifications and Drawings

- a) The Goods and Related Services supplied under this Contract shall conform to the technical specifications and standards mentioned in Section

V, Schedule of Requirements and, when no applicable standard is mentioned, the standard shall be equivalent or superior to the official standards whose application is appropriate to the Goods' country of origin.

- b) The Supplier shall be entitled to disclaim responsibility for any design, data, drawing, specification or other document, or any modification thereof provided or designed by or on behalf of the Procuring Entity, by giving a notice of such disclaimer to the Procuring Entity.
- c) Wherever references are made in the Contract to codes and standards in accordance with which it shall be executed, the edition or the revised version of such codes and standards shall be those specified in the Schedule of Requirements. During Contract execution, any changes in any such codes and standards shall be applied only after approval by the Procuring Entity and shall be treated in accordance with GCC Clause 33.

23. Packing and Documents

23.1 The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination, as indicated in the Contract. During transit, the packing shall be sufficient to withstand, without limitation, rough handling and exposure to extreme temperatures, salt and precipitation, and open storage. Packing case size and weights shall take into consideration, where appropriate, the remoteness of the goods' final destination and the absence of heavy handling facilities at all points in transit.

23.2 The packing, marking, and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the Contract, including additional requirements, if any, specified in the SCC, and in any other instructions ordered by the Procuring Entity.

24. Insurance

24.1 Unless otherwise specified in the SCC, the Goods supplied under the Contract shall be fully insured - in a freely convertible currency from an eligible country - against loss or damage incidental to manufacture or acquisition, transportation, storage, and delivery, in accordance with the applicable Incoterms or in the manner specified in the SCC.

25. Transportation and Incidental Services

25.1 Unless otherwise specified in the SCC, responsibility for arranging transportation of the Goods shall be in accordance with the specified Incoterms.

25.2 The Supplier may be required to provide any or all of the following services, including additional services, if any, specified in the SCC:

- a) performance or supervision of on-site assembly and/or start-up of the supplied Goods;
- b) furnishing of tools required for assembly and/or maintenance of the supplied Goods;
- c) furnishing of a detailed operations and maintenance manual for each appropriate unit of the supplied Goods;
- d) performance or supervision or maintenance and/or repair of the supplied Goods, for a period of time agreed by the parties, provided that this service shall not relieve the Supplier of any warranty obligations under this Contract; and
- e) training of the Procuring Entity's personnel, at the Supplier's plant and/or on-site, in assembly, start-up, operation, maintenance, and/or repair of the supplied Goods.

25.3 Prices charged by the Supplier for incidental services, if not included in the Contract Price for the Goods, shall be agreed upon in advance by the parties and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services.

26. Inspections and Tests

26.1 The Supplier shall at its own expense and at no cost to the Procuring Entity carry out all such tests and/or inspections of the Goods and Related Services as are specified in the SCC.

26.2 The inspections and tests may be conducted on the premises of the Supplier or its Subcontractor, at point of delivery, and/or at the Goods' final destination, or in another place in Kenya as specified in the SCC. Subject to GCC Sub-Clause 26.3, if conducted on the premises of the Supplier or its Subcontractor, all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no charge to the Procuring Entity.

26.3 The Procuring Entity or its designated representative shall be entitled to attend the tests and/or inspections referred to in GCC Sub-Clause 26.2, provided that the Procuring Entity bear all of its own costs and expenses incurred in connection with such attendance including, but not limited to, all travelling and board and lodging expenses.

26.4 Whenever the Supplier is ready to carry out any such test and inspection, it shall give a reasonable advance notice, including the place and time, to the Procuring Entity. The Supplier shall obtain from any relevant third party or manufacturer any necessary permission or consent to enable the Procuring Entity, or its designated representative, to attend the test and/or inspection.

26.5 The Procuring Entity may require the Supplier to carry out any test and/or inspection not required by the Contract but deemed necessary to verify that the characteristics and performance of the Goods comply with the technical specifications, codes and standards under the Contract, provided that the Supplier's reasonable costs and expenses incurred in the carrying out of such test and/or inspection shall be added to the Contract Price. Further, if such test and/or inspection impedes the progress of manufacturing and/or the Supplier's performance of its other obligations under the Contract, due allowance will be made in respect of the Delivery Dates and Completion Dates and the other obligations so affected.

26.6 The Supplier shall provide the Procuring Entity with a report of the results of any such test and/or inspection.

26.7 The Procuring Entity may reject any Goods or any part thereof that fail to pass any test and/or inspection or do not conform to the specifications. The Supplier shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Procuring Entity, and shall repeat the test and/or inspection, at no cost to the Procuring Entity, upon giving a notice pursuant to GCC Sub-Clause 26.4.

26.8 The Supplier agrees that neither the execution of a test and/or inspection of the Goods or any part thereof, nor the attendance by the Procuring Entity or its representative, nor the issue of any report pursuant to GCC Sub-Clause 26.6, shall release the Supplier from any warranties or other obligations under the Contract.

27. Liquidated Damages

27.1 Except as provided under GCC Clause 32, if the Supplier fails to deliver any or all of the Goods by the Date(s) of delivery or perform the Related Services within the period specified in the Contract, the Procuring Entity may without prejudice to all its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to the percentage specified in the SCC of the delivered price of the delayed Goods or unperformed Services for each week or part thereof of delay until actual delivery or performance, up to a maximum deduction of the percentage specified in the SCC. Once the maximum is reached, the Procuring Entity may terminate the Contract pursuant to GCC Clause 35.

28. Warranty

28.1 The Supplier warrants that all the Goods are new, unused, and of the most recent or current models, and that they incorporate all recent improvements in design and materials, unless provided otherwise in the Contract.

28.2 Subject to GCC Sub-Clause 22.1(b), the Supplier further warrants that the Goods shall be free from defects arising from any act or omission of the Supplier or arising from design, materials, and workmanship, under normal use in the conditions prevailing in the country of final destination.

28.3 Unless otherwise specified in the SCC, the warranty shall remain valid for twelve (12) months after the Goods, or any portion thereof as the case may be, have been delivered to and accepted at the final destination indicated in the SCC, or for eighteen (18) months after the date of shipment from the port or place of loading in the country of origin, whichever period concludes earlier.

28.4 The Procuring Entity shall give notice to the Supplier stating the nature of any such defects together with all available evidence thereof, promptly following the discovery thereof. The Procuring Entity shall afford all reasonable opportunity for the Supplier to inspect such defects.

28.5 Upon receipt of such notice, the Supplier shall, within the period specified in the SCC, expeditiously repair or replace the defective Goods or parts thereof, at no cost to the Procuring Entity.

28.6 If having been notified, the Supplier fails to remedy the defect within the period specified in the SCC, the Procuring Entity may proceed to take within a reasonable period such remedial action as may be necessary, at the Supplier's risk and expense and without prejudice to any other rights which the Procuring Entity may have against the Supplier under the Contract.

29. Patent Indemnity

29.1 The Supplier shall, subject to the Procuring Entity's compliance with GCC Sub-Clause 29.2, indemnify and hold harmless the Procuring Entity and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Procuring Entity may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract by reason of:

- a) the installation of the Goods by the Supplier or the use of the Goods in the country where the Site is located; and
- b) the sale in any country of the products produced by the Goods.

Such indemnity shall not cover any use of the Goods or any part thereof other than for the purpose indicated by or to be reasonably inferred from the Contract, neither any infringement resulting from the use of the Goods or any part thereof, or any products produced thereby in association or combination with any other equipment, plant, or materials not supplied by the Supplier, pursuant to the Contract.

29.2 If any proceedings are brought or any claim is made against the Procuring Entity arising out of the matters referred to in GCC Sub-Clause 29.1, the Procuring Entity shall promptly give the Supplier a notice thereof, and the Supplier may at its own expense and in the Procuring Entity's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim.

29.3 If the Supplier fails to notify the Procuring Entity within twenty-eight (28) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Procuring Entity shall be free to conduct the same on its own behalf.

29.4 The Procuring Entity shall, at the Supplier's request, afford all available assistance to the Supplier in conducting such proceedings or claim, and shall be reimbursed by the Supplier for all reasonable expenses incurred in so doing.

29.5 The Procuring Entity shall indemnify and hold harmless the Supplier and its employees, officers, and Subcontractors from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Supplier may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract arising out of or in connection with any design, data, drawing, specification, or other documents or materials provided or designed by or on behalf of the Procuring Entity.

30. Limitation of Liability

30.1 Except in cases of criminal negligence or wilful misconduct:

- a) the Supplier shall not be liable to the Procuring Entity, whether in contract, tort, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, provided that this exclusion shall not apply to any obligation of the Supplier to pay liquidated damages to the Procuring Entity, and
- b) the aggregate liability of the Supplier to the Procuring Entity, whether under the Contract, in tort or otherwise, shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment, or to any obligation of the Supplier to indemnify the Procuring Entity with respect to patent infringement.

31. Change in Laws and Regulations

31.1 Unless otherwise specified in the Contract, if after the date 30 days prior to the date of Tender submission, any law, regulation, ordinance, order or bylaw having the force of law is enacted, promulgated, abrogated, or changed in Kenya (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the Delivery Date and/or the Contract Price, such Delivery Date and/or Contract Price shall be correspondingly increased or decreased, to the extent that the Supplier has thereby been affected in the performance of any of its obligations under the Contract. Notwithstanding the foregoing, such additional or reduced cost shall not be separately paid or credited if the same has already been accounted for in the price adjustment provisions where applicable, in accordance with GCC Clause 15.

32. Force Majeure

32.1 The Supplier shall not be liable for forfeiture of its Performance Security, liquidated damages, or termination for default if and to the extent that its delay in performance or other failure to perform its obligations under the Contract is the result of an event of Force Majeure.

32.2 For purposes of this Clause, “Force Majeure” means an event or situation beyond the control of the Supplier that is not foreseeable, is unavoidable, and its origin is not due to negligence or lack of care on the part of the Supplier. Such events may include, but not be limited to, acts of the Procuring Entity in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes.

32.3 If a Force Majeure situation arises, the Supplier shall promptly notify the Procuring Entity in writing of such condition and the cause thereof. Unless otherwise directed by the Procuring Entity in writing, the Supplier shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

33. Change Orders and Contract Amendments

33.1 The Procuring Entity may at any time order the Supplier through notice in accordance with GCC Clause 8, to make changes within the general scope of the Contract in any one or more of the following:

- a) drawings, designs, or specifications, where Goods to be furnished under the Contract are to be specifically manufactured for the Procuring Entity;
- b) the method of shipment or packing;
- c) the place of delivery; and
- d) the Related Services to be provided by the Supplier.

33.2 If any such change causes an increase or decrease in the cost of, or the time required for, the Supplier's performance of any provisions under the Contract, an equitable adjustment shall be made in the Contract Price or in the Delivery/Completion Schedule, or both, and the Contract shall accordingly be amended. Any claims by the Supplier for adjustment under this Clause must be asserted within twenty-eight (28) days from the date of the Supplier's receipt of the Procuring Entity's change order.

33.3 Prices to be charged by the Supplier for any Related Services that might be needed but which were not included in the Contract shall be agreed upon in advance by the parties and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services.

33.4 Value Engineering: The Supplier may prepare, at its own cost, a value engineering proposal at any time during the performance of the contract. The value engineering proposal shall, at a minimum, include the following:

- a) the proposed change(s), and a description of the difference to the existing contract requirements;
- b) a full cost/benefit analysis of the proposed change(s) including a description and estimate of costs (including life cycle costs) the Procuring Entity may incur in implementing the value engineering proposal; and
- c) a description of any effect(s) of the change on performance/functionality.

33.5 The Procuring Entity may accept the value engineering proposal if the proposal demonstrates benefits that: (a) accelerate the delivery period; or (b) reduce the Contract Price or the life cycle costs to the Procuring Entity; or (c) improve the quality, efficiency or sustainability of the Goods; or (d) yield any other benefits to the Procuring Entity, without compromising the necessary functions of the Facilities.

33.6 If the value engineering proposal is approved by the Procuring Entity and results in: (a) a reduction of the Contract Price, the amount to be paid to the Supplier shall be the percentage specified in the SCC of the reduction in the Contract Price; or (b) an increase in the Contract Price, but results in a reduction in life cycle costs due to any benefit described above, the amount to be paid to the Supplier shall be the full increase in the Contract Price.

33.7 Subject to the above, no variation in or modification of the terms of the Contract shall be made except by written amendment signed by the parties.

34. Extensions of Time

34.1 If at any time during performance of the Contract, the Supplier or its subcontractors should encounter conditions impeding timely delivery of the Goods or completion of Related Services pursuant to GCC Clause 13, the Supplier shall promptly notify the Procuring Entity in writing of the delay, its likely duration, and its cause. As soon as practicable after receipt of the Supplier's notice, the Procuring Entity shall evaluate the situation and may at its discretion extend the Supplier's time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract.

34.2 Except in case of Force Majeure, as provided under GCC Clause 32, a delay by the Supplier in the performance of its Delivery and Completion obligations shall render the Supplier liable to the imposition of liquidated damages pursuant to GCC Clause 27, unless an extension of time is agreed upon, pursuant to GCC Sub-Clause 34.1.

35. Termination

35.1 Termination for Default

- a) The Procuring Entity, without prejudice to any other remedy for breach of Contract, by written notice of default sent to the Supplier, may terminate the Contract in whole or in part:
  - i) if the Supplier fails to deliver any or all of the Goods within the period specified in the Contract, or within any extension thereof granted by the Procuring Entity pursuant to GCC Clause 34;
  - ii) if the Supplier fails to perform any other obligation under the Contract; or
  - iii) if the Supplier, in the judgment of the Procuring Entity has engaged in Fraud and Corruption, as defined in paragraph 2.2(a) of the Appendix to the GCC, in competing for or in executing the Contract.
- b) In the event the Procuring Entity terminates the Contract in whole or in part, pursuant to GCC Clause 35.1(a), the Procuring Entity may procure, upon such terms and in such manner as it deems appropriate, Goods or Related Services similar to those undelivered or not performed, and the Supplier shall be liable to the Procuring Entity for any additional costs for such similar Goods or Related Services. However, the Supplier shall continue performance of the Contract to the extent not terminated.

35.2 Termination for Insolvency - The Procuring Entity may at any time terminate the Contract by giving notice to the Supplier if the Supplier becomes

bankrupt or otherwise insolvent. In such event, termination will be without compensation to the Supplier, provided that such termination will not prejudice or affect any right of action or remedy that has accrued or will accrue thereafter to the Procuring Entity.

35.3 Termination for Convenience

- a) The Procuring Entity, by notice sent to the Supplier, may terminate the Contract, in whole or in part, at any time for its convenience. The notice of termination shall specify that termination is for the Procuring Entity's convenience, the extent to which performance of the Supplier under the Contract is terminated, and the date upon which such termination becomes effective.
- b) The Goods that are complete and ready for shipment within twenty-eight (28) days after the Supplier's receipt of notice of termination shall be accepted by the Procuring Entity at the Contract terms and prices. For the remaining Goods, the Procuring Entity may elect: (i) to have any portion completed and delivered at the Contract terms and prices; and/or (ii) to cancel the remainder and pay to the Supplier an agreed amount for partially completed Goods and Related Services and for materials and parts previously procured by the Supplier.

36. Assignment

36.1 Neither the Procuring Entity nor the Supplier shall assign, in whole or in part, their obligations under this Contract, except with prior written consent of the other party.

37. Export Restriction

37.1 Notwithstanding any obligation under the Contract to complete all export formalities, any export restrictions attributable to the Procuring Entity, to Kenya, or to the use of the products/goods, systems or services to be supplied, which arise from trade regulations from a country supplying those products/goods, systems or services, and which substantially impede the Supplier from meeting its obligations under the Contract, shall release the Supplier from the obligation to provide deliveries or services, always provided, however, that the Supplier can demonstrate to the satisfaction of the Procuring Entity that it has completed all formalities in a timely manner, including applying for permits, authorizations and licenses necessary for the export of the products/goods, systems or services under the terms of the Contract. Termination of the Contract on this basis shall be for the Procuring Entity's convenience pursuant to Sub-Clause 35.3.

Section VII - Special Conditions of Contract

The following Special Conditions of Contract (SCC) shall supplement and/or amend the General Conditions of Contract (GCC). Whenever there is a conflict, the provisions herein shall prevail over those in the GCC.

<table>
<tr><th>GCC Clause</th><th>Special Condition</th></tr>
<tr><td>GCC 1.1(h)</td><td>The Procuring Entity is: Ministry of Health.</td></tr>
<tr><td>GCC 4.2(a)</td><td>The meaning of the trade terms shall be as prescribed by Incoterms.</td></tr>
<tr><td>GCC 4.2(b)</td><td>The version edition of Incoterms shall be INCOTERMS 2015.</td></tr>
<tr><td>GCC 8.1</td><td>For notices, the Procuring Entity's address shall be: Ministry of Health Procurement Office, procurement@moh.example.test.</td></tr>
<tr><td>GCC 13.1</td><td>Details of shipping and other documents to be furnished by the Supplier are: the Manufacturer's or Supplier's warranty certificate, the inspection certificate (if any) issued by the nominated inspection agency, and the Supplier's delivery note for each consignment. The above documents shall be received by the Procuring Entity before arrival of the Goods and, if not received, the Supplier will be responsible for any consequent expenses.</td></tr>
<tr><td>GCC 15.1</td><td>The prices charged for the Goods supplied and the Related Services performed shall not be adjustable.</td></tr>
<tr><td>GCC 16.1</td><td>Payment shall be made in KES. Payment within 30 days after delivery, inspection, acceptance and receipt of a valid invoice, within 30 days of the Procuring Entity's acceptance of the Supplier's invoice. No advance payment is offered or payable under this Contract.</td></tr>
<tr><td>GCC 18.1</td><td>A Performance Security is required, in the amount of 10% of the Contract Price.</td></tr>
<tr><td>GCC 18.3</td><td>The Performance Security form shall be: Unconditional Demand Bank Guarantee, in the amount of 10% of the Contract Price, denominated in KES.</td></tr>
<tr><td>GCC 23.2</td><td>Packing, marking and documentation shall comply with the packing requirements necessary to prevent damage or deterioration of the Goods in transit to their final destination, and shall bear the Tender Reference and the final destination address on the outer packaging. No additional item-specific packing or marking requirement applies beyond the approved technical specification and the Section V.1 Goods and Delivery Schedule.</td></tr>
<tr><td>GCC 24.1</td><td>Insurance shall be arranged in accordance with the applicable Incoterms (INCOTERMS 2015).</td></tr>
<tr><td>GCC 25.1</td><td>Transportation responsibility shall be in accordance with the applicable Incoterms (INCOTERMS 2015).</td></tr>
<tr><td>GCC 25.2</td><td>No incidental Related Services are required under this Contract.</td></tr>
<tr><td>GCC 26.1 - 26.2</td><td>The nature and frequency of inspections and tests shall be as specified in Section V.6, Inspections, Tests and Acceptance Requirements; each acceptance requirement listed there is a condition of acceptance. Inspections and tests shall be conducted at Ministry of Health Headquarters, Afya House, Nairobi.</td></tr>
<tr><td>GCC 27.1</td><td>Liquidated damages shall be deducted at 0.5% of the delivered price of the delayed Goods or unperformed Services for each week or part thereof of delay, up to a maximum deduction of 10% of the Contract Price.</td></tr>
<tr><td>GCC 28.3</td><td>The warranty period for each item shall be the minimum warranty specified in the Section V.1 Goods and Delivery Schedule and Section V.4, running from the date of delivery to and acceptance at the final destination, with the on-site support, response time and manufacturer-backed support obligations stated in Section V.4:
<table>
<tr><th>Item</th><th>Warranty period</th><th>Final destination</th></tr>
<tr><td>Business laptops</td><td>36 months</td><td>Ministry of Health Headquarters, Afya House, Nairobi</td></tr>
</table>
</td></tr>
<tr><td>GCC 28.5 - 28.6</td><td>The Supplier shall repair or replace defective Goods within a reasonable period agreed with Ministry of Health Procurement Office, procurement@moh.example.test, having regard to the warranty period stated above and the delay damages provisions at GCC 27.1.</td></tr>
</table>

Section VIII - Contract Forms

This Section contains forms which, once completed, will form part of the Contract. The form for Performance Security, when required, shall only be completed by the successful tenderer after contract award.

Form No. 1 - Notification of Intention to Award

This Notification of Intention to Award will be issued to each Tenderer that submitted a Tender, following the award decision.

1. For the attention of Tenderer's Authorized Representative

Name: _____ Address: _____ Telephone: _____ Email Address: _____

2. Date of transmission: _____ This Notification is sent by: _____ (Name and designation)

3. Notification of Intention to Award

Procuring Entity: Ministry of Health

Project: Supply and delivery of business laptops

Contract title: Supply and delivery of business laptops

Country: Kenya

ITT No: TND-MOH-2027-033

This Notification of Intention to Award (Notification) notifies you of our decision to award the above contract. The transmission of this Notification begins the Standstill Period. During the Standstill Period, you may request a debriefing in relation to the evaluation of your tender, and submit a Procurement-related Complaint in relation to the decision to award the contract.

a) The successful tenderer

Name of successful Tenderer: _____ Address of the successful Tenderer: _____ Contract price of the successful Tender (Kenya Shillings, in words and figures): _____

b) Other Tenderers

S/No.	Name of Tenderer	Tender Price as read out	Tenderer's evaluated price	One Reason Why Not Evaluated (state NE if not evaluated)
_____	_____	_____	_____	_____

5. How to request a debriefing

DEADLINE: The deadline to request a debriefing expires at midnight on _____ (local time). A written request for debriefing must be made within three (3) Business Days of receipt of this Notification of Intention to Award, addressed to: Attention _____, Title/position _____, Agency Ministry of Health, Email address _____. If the request is received within this deadline, the Procuring Entity will provide the debriefing within five (5) Business Days of receipt of the request. If the Procuring Entity is unable to provide the debriefing within this period, the Standstill Period shall be extended by five (5) Days after the date the debriefing is provided, and the Procuring Entity will notify you and confirm the date the extended Standstill Period will end. The debriefing may be in writing, by phone, video conference call or in person; the Procuring Entity shall promptly advise you in writing how the debriefing will take place and confirm the date and time. If the deadline to request a debriefing has expired, you may still request a debriefing; in that case, the Procuring Entity will provide the debriefing as soon as practicable, and normally no later than fifteen (15) Days from the date of publication of the Contract Award Notice.

6. How to make a complaint

Period: a Procurement-related Complaint challenging the decision to award shall be submitted by midnight on _____ (local time), addressed to: Attention _____, Title/position _____, Agency Ministry of Health, Email address _____. You do not need to have requested, or received, a debriefing before making this complaint. Your complaint must be submitted within the Standstill Period and received by the Procuring Entity before the Standstill Period ends. Further information: refer to the Public Procurement and Asset Disposal Act 2015 and its Regulations, available from www.ppra.go.ke or complaints@ppra.go.ke. There are four essential requirements: (i) you must be an "interested party" - a Tenderer who submitted a Tender in this tendering process and is the recipient of this Notification of Intention to Award; (ii) the complaint can only challenge the decision to award the contract; (iii) you must submit the complaint within the period stated above; (iv) you must include, in your complaint, all of the information required to support your complaint.

7. Standstill Period

DEADLINE: the Standstill Period is due to end at midnight on _____ (local time). The Standstill Period lasts fourteen (14) Days after the date of transmission of this Notification of Intention to Award. The Standstill Period may be extended as stated in paragraph 5 above.

On behalf of the Procuring Entity: Signature _____ Name _____ Title/position _____ Telephone _____ Email _____

Form No. 2 - Request for Review

Form for Review (r.203(1)). This is the statutory Public Procurement Administrative Review Board form, to be completed by an aggrieved Tenderer wishing to submit a request for review.

PUBLIC PROCUREMENT ADMINISTRATIVE REVIEW BOARD

APPLICATION NO. _____ OF _____ 20_____

BETWEEN

_____ APPLICANT

AND

_____ RESPONDENT (Procuring Entity)

Request for review of the decision of Ministry of Health dated the _____ day of _____ 20_____ in the matter of Tender No. TND-MOH-2027-033 of _____ 20_____ for Supply and delivery of business laptops.

REQUEST FOR REVIEW

I/We _____, the above named Applicant(s), of address: Physical address _____ P.O. Box No. _____ Tel. No. _____ Email _____, hereby request the Public Procurement Administrative Review Board to review the whole/part of the above mentioned decision on the following grounds, namely:

1. _____

2. _____

By this memorandum, the Applicant requests the Board for an order/orders that:

1. _____

2. _____

SIGNED _____ (Applicant) Dated on _____ day of _____ /20_____

FOR OFFICIAL USE ONLY - Lodged with the Secretary, Public Procurement Administrative Review Board on _____ day of _____ 20_____

SIGNED _____ Board Secretary

Form No. 3 - Letter of Award

To be issued by the Procuring Entity, on its letterhead, following the award decision.

Date: _____

To: _____ (name and address of the Supplier)

Subject: Notification of Award Contract No. _____

This is to notify you that your Tender dated _____ for execution of Supply and delivery of business laptops (TND-MOH-2027-033) for the Accepted Contract Amount of _____ (amount in numbers and words and name of currency), as corrected and modified in accordance with the Instructions to Tenderers, is hereby accepted by Ministry of Health.

You are requested to furnish the Performance Security within twenty-one (21) days in accordance with the Conditions of Contract, using for that purpose the Performance Security Form included in Section VIII, Contract Forms, of the Tendering document.

Authorized Signature: _____

Name and Title of Signatory: _____

Name of Agency: Ministry of Health

Attachment: Contract Agreement

Form No. 4 - Contract Agreement

To be completed by the successful Tenderer after contract award, in accordance with the instructions indicated.

THIS AGREEMENT made the _____ day of _____, _____. BETWEEN (1) Ministry of Health, having its principal place of business at Afya House, Cathedral Road, P.O. Box 30016-00100, Nairobi (hereinafter called “the Procuring Entity”), of the one part; and (2) _____, a corporation incorporated under the laws of _____ and having its principal place of business at _____ (hereinafter called “the Supplier”), of the other part.

1. WHEREAS the Procuring Entity invited Tenders for certain Goods and ancillary services, viz. Supply and delivery of business laptops (TND-MOH-2027-033), and has accepted a Tender by the Supplier for the supply of those Goods and Services, the Procuring Entity and the Supplier agree as follows:
    i. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Contract documents referred to.
    ii. The following documents shall be deemed to form and be read and construed as part of this Agreement. This Agreement shall prevail over all other contract documents.
        - a) the Letter of Acceptance
        - b) the Letter of Tender
        - c) the Addenda Nos. _____ (if any)
        - d) Special Conditions of Contract
        - e) General Conditions of Contract
        - f) the Specification (including Schedule of Requirements and Technical Specifications)
        - g) the completed Schedules (including Price Schedules)
        - h) any other document listed in the GCC as forming part of the Contract
    iii. In consideration of the payments to be made by the Procuring Entity to the Supplier as specified in this Agreement, the Supplier hereby covenants with the Procuring Entity to provide the Goods and Services and to remedy defects therein in conformity in all respects with the provisions of the Contract.
2. The Procuring Entity hereby covenants to pay the Supplier in consideration of the provision of the Goods and Services and the remedying of

defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

3. IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of Kenya on the day, month and year indicated above.

SIGNED ON _____ on behalf of Ministry of Health

By _____ in the capacity of _____

In the presence of _____

SIGNED ON _____ on behalf of the Supplier

By _____ in the capacity of _____

In the presence of _____

Form No. 5 - Performance Security [Option 1 - Unconditional Demand Bank Guarantee]

To be issued on the Guarantor's letterhead, by the successful Tenderer, after contract award.

Beneficiary: Ministry of Health, Afya House, Cathedral Road, P.O. Box 30016-00100, Nairobi

Date: _____

Guarantor: _____

1. We have been informed that _____ (hereinafter called “the Contractor”) has entered into Contract No. _____ dated _____ with Ministry of Health (the Procuring Entity as the Beneficiary), for the execution of Supply and delivery of business laptops (hereinafter called “the Contract”).
2. Furthermore, we understand that, according to the conditions of the Contract, a performance guarantee is required.
3. At the request of the Contractor, we as Guarantor, hereby irrevocably undertake to pay the Beneficiary any sum or sums not exceeding in total an amount equivalent to 10% of the Contract Price (in words: _____), such sum being payable in the types and proportions of currencies in which the Contract Price is payable, upon receipt by us of the Beneficiary's complying demand supported by the Beneficiary's statement, whether in the demand itself or in a separate signed document accompanying or identifying the demand, stating that the Contractor is in breach of its obligation(s) under the Contract, without the Beneficiary needing to prove or to show grounds for the demand or the sum specified therein.
4. This guarantee shall expire no later than the _____ day of _____, _____, and any demand for payment under it must be received by us at the office indicated above on or before that date.
5. The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed _____, in response to the Beneficiary's written request for such extension, such request to be presented to the Guarantor before the expiry of the guarantee.

Name of Authorized Official, signature(s) and seals/stamps: _____

Note: All italicized text (including footnotes) is for use in preparing this form and shall be deleted from the final product.

Form No. 8 - Beneficial Ownership Disclosure Form

(Amended and issued pursuant to PPRA Circular No. 02/2022). This Beneficial Ownership Disclosure Form is to be completed by the successful tenderer pursuant to Regulation 13(2A) and 13(6) of the Companies (Beneficial Ownership Information) Regulations, 2020. In case of a joint venture, the tenderer must submit a separate Form for each member. The beneficial ownership information submitted in this Form shall be current as of the date of its submission. For the purposes of this Form, a Beneficial Owner of a Tenderer is any natural person who ultimately owns or controls the legal person (tenderer) or arrangement, or a natural person on whose behalf a transaction is conducted, and includes those persons who exercise ultimate effective control over the legal person (tenderer) or arrangement. Completed only by the successful Tenderer, after notification of intention to enter into a contract.

Tender Reference No.: TND-MOH-2027-033

Name of the Tender Title/Description: Supply and delivery of business laptops

To: Ministry of Health

In response to the requirement in your notification of award dated _____ to furnish additional information on beneficial ownership:

I) We hereby provide the following beneficial ownership information.

Details of beneficial ownership

	Details of all Beneficial Owners	% of shares a person holds in the company, directly or indirectly	% of voting rights a person holds in the company, directly or indirectly	Whether a person directly or indirectly holds a right to appoint or remove a member of the board of directors of the company or an equivalent governing body of the Tenderer (Yes/No)	Whether a person directly or indirectly exercises significant influence or control over the Company (tenderer) (Yes/No)
1.	Full Name National identity card number or Passport number Personal Identification Number (where applicable) Nationality(ies) Date of birth (dd/mm/yyyy) Postal address Residential address Telephone number Email address Occupation or profession	Directly: _____ % of shares Indirectly: _____ % of shares	Directly: _____ % of voting rights Indirectly: _____ % of voting rights	1. Having the right to appoint a majority of the board of directors or an equivalent governing body of the Tenderer: Yes/No 2. Is this right held directly or indirectly? Direct: _____ Indirect: _____	1. Exercises significant influence or control over the Company (tenderer): Yes/No 2. Is this influence or control exercised directly or indirectly? Direct: _____ Indirect: _____
2.	Full Name National identity card number or Passport number Personal Identification Number (where applicable) Nationality(ies) Date of birth (dd/mm/yyyy) Postal address Residential address Telephone number Email address Occupation or profession	Directly: _____ % of shares Indirectly: _____ % of shares	Directly: _____ % of voting rights Indirectly: _____ % of voting rights	1. Having the right to appoint a majority of the board of directors or an equivalent governing body of the Tenderer: Yes/No 2. Is this right held directly or indirectly? Direct: _____ Indirect: _____	1. Exercises significant influence or control over the Company (tenderer): Yes/No 2. Is this influence or control exercised directly or indirectly? Direct: _____ Indirect: _____
3. etc.	(add further numbered rows for each additional Beneficial Owner, following the same structure)				

II) Am fully aware that beneficial ownership information above shall be reported to the Public Procurement Regulatory Authority together with other details in relation to contract awards and shall be maintained in the Government Portal, published and made publicly available pursuant to Regulation 13(5) of the Companies (Beneficial Ownership Information) Regulations, 2020. Notwithstanding this paragraph, Personally Identifiable Information in line with the Data Protection Act shall not be published or made public. Personally Identifiable Information (PII) is defined as any information that can be used to distinguish one person from another and can be used to deanonymize previously anonymous data. This information includes National identity card number or Passport number, Personal Identification Number, Date of birth, Residential address, email address and Telephone number.

III) In determining who meets the threshold of who a beneficial owner is, the Tenderer must consider a natural person who in relation to the company:

a. holds at least ten percent of the issued shares in the company either directly or indirectly;
b. exercises at least ten percent of the voting rights in the company either directly or indirectly;
c. holds a right, directly or indirectly, to appoint or remove a director of the company; or
d. exercises significant influence or control, directly or indirectly, over the company.

IV) What is stated herein above is true to the best of my knowledge, information and belief.

Name of the Tenderer: _____

Name of the person duly authorized to sign the Tender on behalf of the Tenderer: _____

Designation of the person signing the Tender: _____

Signature of the person named above: _____

Date this _____ day of _____, _____

Bidder Official Stamp